

**THE
LIFE, TRIAL AND CONVERSATIONS
OF
ROBERT EMMET, ESQ.**

Leader of the Irish Insurrection of 1803

**THE
LIFE, TRIAL AND CONVERSATIONS
OF
ROBERT EMMET, ESQ.**

Leader of the Irish Insurrection of 1803

The Project Gutenberg eBook of The life, trial and conversations of Robert Emmet, Esq., leader of the Irish insurrection of 1803

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The life, trial and conversations of Robert Emmet, Esq., leader of the Irish insurrection of 1803
also, the celebrated speech made by him on the occasion

Author: Anonymous

Contributor: Robert Emmet

Release date: November 22, 2023 [eBook #72202]

Language: English

Original publication: New York: Robert Coddington, 1850

Other information and formats: www.gutenberg.org/ebooks/72202

Credits: Richard Tonsing, Tim Lindell, and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK THE LIFE,
TRIAL AND CONVERSATIONS OF ROBERT EMMET, ESQ., LEADER
OF THE IRISH INSURRECTION OF 1803 ***

Transcriber's Note:

New original cover art included with this eBook is
granted to the public domain.

THE
LIFE, TRIAL AND CONVERSATIONS
OF
ROBERT EMMET, ESQ.

Leader of the Irish Insurrection of 1803:

ALSO, THE
CELEBRATED SPEECH

MADE BY HIM ON THE OCCASION.

O breathe not his name, let it sleep in the shade,
Where cold and unhonoured his relics are laid;
Sad, silent, and dark be the tears that we shed,
As the night dew that falls on the grass o'er his head
But the night dew that falls, though in silence it weeps
Shall brighten with verdure the grave where he sleeps
And the tear that we shed, though in secret it rolls,
Shall long keep his memory green in our souls.—MOORE

Stereotyped from the last Dublin Edition.

NEW-YORK:
PUBLISHED BY ROBERT CODDINGTON

No. 366 BOWERY,
1850.

THE UNINSCRIBED TOMB OF EMMET.

“Let my tomb remain uninscribed, and my memory in oblivion, until other times and other men can do justice to my character.”

“Pray tell me,” I said, to an old man who stray’d,
Drooping over the grave which his own hands had made,
“Pray tell me the name of the tenant who sleeps
’Neath yonder lone shade where the sad willow weeps;
Every stone is engrav’d with the name of the dead,
But yon black slab declares not whose spirit is fled.”

In silence he bow’d, then beckon’d me nigh,
Till we stood o’er the grave—then he said with a sigh,
“Yes, they dare not to trace e’en a word on this stone,
To the memory of him who sleeps coldly alone;
He told them—commanded—the lines o’er his grave,
Should never be traced by the hand of a slave!

“He bade them to shade e’en his name in the gloom,
Till the morning of freedom should shine on his tomb,
‘When the flag of my country at liberty flies,
Then—then let my name and my monument rise.’
You see they obey’d him—’tis thirty-three years,
And they still come to moisten his grave with their tears.

“He was young like yourself, and aspir’d to o’erthrow
The tyrants who fill’d his lov’d island with woe;
They crush’d his bold spirit—this earth was confin’d,
Too scant for the range of his luminous mind.”
He paus’d, and the old man went slowly away,
And I felt, as he left me, an impulse to pray.

Grant, Heaven! I may see, ere my own days are done,
A monument rise o’er my country’s lost son!
And oh! proudest task, be it mine to indite
The long-delay’d tribute a freeman must write;
‘Till then shall its theme in my breast deeply dwell,
So peace to thy slumbers, dear shade, fare thee well!

THE
LIFE AND CONVERSATIONS
OF
ROBERT EMMET, ESQ.

There are few persons whose name has been so hailed by the young and ardent, whose firmness and patriotism has been more admired, and whose character has produced a greater effect upon society, than the subject of these pages.

Robert Emmet was born in Dublin, in the year 1782, and was the son of Dr. Emmet, for many years state physician in Dublin. He was the youngest brother of Thomas Addis Emmet, who, before the rebellion of 1798, had abandoned a respectable situation at the Irish Bar, in order to project and carry into execution, the schemes of that day, for an Irish Republic, and of course, separation from Great Britain.

Emmet was moulded in Nature's happiest form for his destined service. He possessed the physical qualities necessary for an accomplished speaker, with high intellect to master and employ knowledge, with imagination and feelings to sway the passions and command the heart; with the power of incessant labour to collect, discipline, and perfect the valued materials of a revolutionary measure, he was eminently calculated for the task which he had undertaken. And, had success depended upon the worth and the virtues of one man, Emmet would now have been hailed as the liberator of his country.

Early impressions are always the most lasting. Emmet had his young mind filled with a detestation of tyranny and injustice at an early age, by the virtue and patriotism of his private tutor, the Rev. Mr. Lewes, who, though a minister of the Established Church, was yet an enemy to its monopolizing power and persecuting spirit towards his Catholic fellow-subjects.

At the age of sixteen he entered Trinity College. Here his progress in classical and mathematical knowledge soon gained him honour and reputation. But his heated spirit had been worked up by the political enthusiasm in which he had been early initiated. At the Historical Society, of which he was a member, he expressed his sentiments so freely on English influence in Ireland, that he came under the suspicions of Lord Chancellor Clare, who ultimately expelled him from College, for denouncing, in a speech he made, the English form of government, and advocating that of a republic.

He had been sufficiently unguarded in his conduct, while the disturbances of '98 existed, to become an object of the vigilance of government, and had found it prudent to reside abroad so long as the habeas corpus act was suspended. He fled to the Continent, where an active correspondence was set on foot by the French government. Emmet, with the chiefs of the preceding Irish Rebellion were summoned to Paris. Consultations were held with them, and the organization of another revolution was commenced and prosecuted with increasing diligence. Nor was the then ruler of France, (Buonaparte) inattentive, or remiss to forward, by every means, in his power, the project. To Emmet was delegated the office of director and mover of this new attempt upon the British dominion in Ireland.

On the expiration of the habeas corpus act, he returned to Dublin, but thought it prudent, for the forwarding of the revolution, to live privately. He took obscure lodgings at Harold's Cross, under the assumed name of Hewit. Here he held his meetings with his associates. These people hailed with transport the opportunity of recommencing another attempt on subverting British power in Ireland! and while some spread themselves over the country in every direction, others fixed themselves in the metropolis.

During the first four months after Emmet's arrival, nothing of his machinations transpired. Soon after the King's Proclamation, on the 8th of March, conceiving the moment of national alarm at the renovation of hostilities, and a threatened invasion, favourable to his projects, he became more active in his preparations. The whole of his family portion, which consisted of two thousand five hundred pounds, he devoted to his enthusiasm. In the beginning of April, he quitted his lodgings at Harold's Cross, with the name of Hewit, and in the new name of Ellis he took the

lease of a house, for which he paid a fine of sixty-one guineas, in Butterfield-Lane, near Rathfarnham. Here he harangued his associates, and encouraged them by hopes of a happy result to their labours.

‘Liberty,’ said he, ‘is the child of oppression, and the birth of the offspring is the death of the parent; while tyranny, like the poetical desert bird, is consumed in flames ignited by itself, and its whole existence is spent in providing the means of self-destruction. We have a complete exemplification of this in the past history and present state of Ireland, where increase of numbers and increase of intelligence, have been the direct result of that system which too long has ruled this kingdom.

‘The relentless oppression of the English Government forced the people into habits of temperance—necessity made them abstemious, and time reconciled them to their wholesome esculent, which providentially came, like the manna of the desert, to feed the sojourners in the land of their fathers.

‘When nature is easily satisfied, and the necessities of life procured with little labour and care, increase of population will follow: because parents, who are contented with their own condition, will feel no uneasiness for their offspring, who can, without any difficulty, procure a situation similar to their own. Emigration from such a country was not to be expected; for men whose modified wants were amply satisfied at home, had no need to seek elsewhere for wealth they did not desire, or distinctions they did not value. Besides, Ireland has always had peculiar attractions in retaining her children: a Scotchman loves a Scotchman, but an Hibernian loves the green fields of his youth and to enjoy these there are few privations to which he will not cheerfully submit. The eccentric humour, the boisterous mirth, the kind and social intercourse, that characterize the peasantry, likewise spread their charms, and generally succeeded in subduing the aspiring notions of adventurers, and helped to retain the people at home. When to these were added the allurements of a more tender kind, and when no restraint was placed upon the natural instinct of man, we must not wonder that Ireland is blessed with a population without a parallel in Europe.

‘The base and cowardly conduct of the Irish proprietors in deserting the country, though at the moment a grievance, was absolutely productive of good. Their large domains were parcelled out to humble cottages; farms

were divided and subdivided; cabins every where raised their unostentatious roofs; and every floor was blessed with a numerous progeny.

‘Ireland has been forced into agriculture;^[1] and, this still farther tends to increase the population, and to give her that political importance she never could have acquired if the people had been immured in mineral dungeons, or confined to the fetid vapours of a manufacturing bastile. Rural labour is not more conducive to the health of the body, than it is beneficial to the exercise of the mind; and we always find the agriculturist superior to the mechanic not only in physical strength, but in moral energy. The one is a natural soldier, who commands respect, and exacts consideration; while the other is a mere animated machine, whose ideas serve but as internal wheels to keep his hands in motion. His frame is distorted, his mind crippled, and his courage annihilated: but the agriculturist is a man such as nature intended—fearless, active and resolute; the air he breathes ensures him health; the ground he tills supplies him with sustenance; and his occupations make him moral, hardy, and brave. This is the copy of a million portraits, and they are all found in Ireland.

‘The aspirations of civilized man after freedom are coeval with his existence. His rights, like the mountain torrent, may be diverted from their original channel, but cannot be effectually impeded in their course. Dams may be raised to stop the coming stream; but, if the congregated waters cannot find another way to the place of their destination, they will burst through every opposition, and overwhelm in destruction all the works of lordly and presumptive man.’

‘But we find,’ observed a bystander, ‘that very populous countries have continued in slavery.’

‘Numbers,’ rejoined Emmet, ‘whose minds are more enslaved than their bodies may submit to injustice; but numbers inspired with intelligence never can. The Irish people are not only shrewd, but informed; and for this good, as well as for every other blessing they possess, they are indebted to the folly and wickedness of their governors, *Divide et impera* has long been the maxim of those who oppressed us; but the result has been the reverse of their anticipations. The continued agitation, faction, and discord, consequent upon such a system of legislation, produced their moral effects, and, like the vivid lightning, served to purify the element they disturbed. The political whirlpool has drawn within its vortex every man in Ireland;

discussion has been universally provoked; and the passions have been enlisted in the general conflict. The human intellect has been propelled, vulgar errors corrected, and the spirit of enquiry and investigation has gone abroad.

‘To reason upon the political state of his country, has long been the propensity of the Irish peasant; and, from continually thinking upon that subject, he has at length learned to think right. He not only knows his degraded condition, but is well acquainted with the cause. There is not a subject connected with the country, on which he cannot give an accurate opinion; he knows, as well as any man in the Castle, the purpose of every measure of Government, whether it be to enrich a spendthrift nobleman by a job, or coerce the unfortunate peasantry by an Insurrection Act.

‘I know my countrymen: I have conversed with them, and have found them practical philosophers. Their sentiments are the pure emanations of acute minds, instructed in the school of nature, and taught by adversity. They are, in consequence, generally correct, and, without any great exertion of thought, are frequently profound. How often have I seen them smile at the abortive efforts of their friends, who endeavour to procure them redress in a constitutional way, while, at the same time, they have told me very pertinently, and very truly, that they expected no concession from Government, until they were able to insist on it!’

During this address, Emmet’s fine manly countenance glowed with an enthusiastic ardour, and he delivered himself with as much animated fervency as if he were addressing a numerous, but distracted assembly, which he wished to persuade. His words flowed with a graceful fluency, and he combined his arguments with all the ease of a man accustomed to abstract discussions.

His amiable and esteemed character gave an elevating influence to the fame of the society of which he was the leader—many of whom, though of equal talents and respectability, were inferior in that fine sensibility of heart, and constancy in friendship, which gained him the love and esteem of all who knew him. Nor was it only for his bland manners and fine sensibilities of heart, and constancy in friendship, and firmness in principle; he ranked amongst the highest of its gifted sons, who display its fertile genius and its social spirit, who introduce the name of Ireland to the respect of the world.

Commensurate with his value to relatives and friends, and to his native city, was the appalling sensation that pervaded his country on the occasion of his lamented death. It is not, then surprising that his removal in one unexpected moment from this busy life's vocations, to the oblivious silence of the tomb, should produce, as it did, a general burst of sorrow, and a common sense of bereavement.

Forty summers have closed around the United Irishmen since they made catholic emancipation and parliamentary reform the leading measures of their policy. They found all the catholics of Ireland, the great majority of its population, reduced by the operation of the ferocious penal laws, to the condition of slaves, in all things but being vendible, to the very meanest of their protestant countrymen. Not only did the British Government embrace every severity that could waste the vigour of the nation, but all the rights of humanity, and every duty of life were sacrificed by its direction or connivance, provided only that this would promote the self interest, or gratify the rancour of the favoured party.

There was a law of discovery, by which a man who betrayed the confidence of his friend, if he were catholic, possessed himself of that friend's estate. There was a law which disabled the catholic father to be guardian to his own child, or to educate him. There was a law which made the disobedience or apostacy of the catholic child the means whereby to disinherit his father. There was a law for robbing a catholic of his horse on the highway, if, when interrogated, he confessed his faith. There was a law to prevent the education of catholic children, and to punish catholic teachers as convicts; to banish the catholic clergy, and to hang them if they returned: to prevent catholics from purchasing or inheriting landed estates: from having arms for their defence: to debar them from the profession of the law: to prevent them from holding any office of trust, honour or emolument, voting at elections, or sitting in parliament.

The United Irishmen found their country under government of those laws, and of perhaps a hundred more, all conceived in the same spirit, and all elaborated with consummate skill to rob, harass, and insult a defenceless people. Those statutes, without parallel for their inhumanity, were framed against christians, under pretence of securing the protestant religion. They were enacted by the Irish protestants, political protestants, than whom no sect has cried more loudly against persecution, when protestants were the

martyrs. For all this the protestant religion is not persecuting in its nature. The crimes of the dominant party are not justly chargeable upon the protestant religion, though committed in its name. They were bitterly deplored by the United Irishmen of all religions, and by none more than the subject of this memoir, himself a member of the established church, but no abettor of its injustice.

Through all this long persecution, the conduct of England wore a vizor of hypocrisy. It was not the conversion of the Irish it desired, but their spoliation, division and subjection. If united in religion, they might unite for their worldly interest, and a means of weakening them by dissension would be lost. The English mission never had the merit of even being honestly fanatical; it was cold-blooded and crafty. Its conduct was not feebly palliated by the mistaken sincerity of blind zeal, which time might soften and philosophy assuage. It had the more terrestrial motives of insatiable rapacity, the appetite for plunder, and the desire of battenning on the green pastures of Ireland. This is the eating canker which neither time nor reason ever cures, and which is now as devouring, where it has the power, as at the first hour.

After the laws had disfranchised four-fifths of the population, all the emoluments of office, all the wealth of the richest church in the world, all the distinctions of power, all the pomp, circumstance, and advantages of dominion, fell into the lap of the favoured few. These men never wished to lessen the pretext of their gains; they never sought the conversion of their helots by any means that ever made proselytes to any cause.

The domestic spoliation of the catholics was the share of the Irish protestants in this wholesale robbery. The spoliation of the Irish nation was the part of England in this boundless plunder: she took the whole trade, prosperity, and independence of Ireland, which the Irish protestants freely surrendered for the license to pillage and tyrannize at home. These wrongs inflicted and endured, begat mutual hatred and frequent collision, and will account for the little union among Irishmen, and the ferocity of character to be found in those districts where the adverse parties came oftenest into contact.

This barter of a nation's rights for the lucre of a faction, is what was called the protestant ascendancy in church and state. It was also called the British constitution. Against that impious combination of treachery within,

and tyranny from without, the United Irishmen pointed their oath of union —“To forward a brotherhood of affection, a community of rights, an identity of interests, and a union of power among Irishmen of every religious persuasion.” It was this oath that was prosecuted as a felony, and for which frequent victims were sent to the scaffold.

Emmet did not live to behold the triumph of the catholic cause, that happy accomplishment of one of the great measures to which he devoted fortune and life. But he saw, or thought he saw, all the materials for a successful struggle for freedom, in the internal resources of his beloved Ireland. In his moments of social ease and retirement, he delighted to enumerate those resources. A writer who seems to have known him well, gives us the following conversation between Emmet and his friends while he was maturing his measures for the coming contest.

‘I have seldom spent a happier hour in my life, than I did that evening with Emmet. His manners, his eloquence, and the sincerity, as well as kindness, which breathed through every thing he said, banished reserve on my part, and we all conversed more like long-trying friends than casual acquaintances. We talked of literature, of London, and of politics. My sentiments regarding Liberty—the goddess he idolized—were warm; and, as I spoke with becoming abhorrence of tyranny, he seemed delighted with my opinions. Before we separated he made me promise to call on him that night at his lodgings; and when I did so, about eight o’clock, I was agreeably surprised to find the Exile there before me. After supper the conversation took a political turn, and Emmet, whose mind was then filled with the project of liberating his country, began to expatiate on the ease with which Ireland could throw off the English yoke, and the benefits that would ensue from such a measure.’

‘Your enthusiasm, my friend,’ said I, interrupting him, ‘carries you beyond the bounds of probability; for, in anticipating a revolution in this country, you forget that England calculates on the subjection of Ireland, and that she is able to compel what it is her interest to desire.’

‘That she desires it,’ he replied, ‘I have no doubt; but that she is able to compel it, I unhesitatingly deny. The belief in England’s superior strength has too long prevailed in this kingdom, but it is now, happily, beginning to disappear. In comparing the two countries, we must exclude from our calculation every thing but physical strength alone, and then the balance

will be entirely in favour of Ireland; for I believe it will be readily admitted that she has the greater military population; and in a struggle for liberty, men only are valuable.

‘It is a matter of arithmetical calculation. Ireland can, in the event of a well-organized revolution, turn into the field between seven and eight hundred thousand effective men—an army certainly more numerous than any force England could send against her.’

‘Admitting your calculation to be correct,’ I returned, ‘you are not to deny the superiority of disciplined troops over rebel numbers. An army of fifty thousand men would soon rout your invincible phalanx.’

‘The time has passed, my dear sir,’ he rejoined, ‘when such an exploded notion found credence among mankind. In a barbarous age, when two armies drew up within gun-shot of each other, each serving as an immovable target for its opponent to fire at, such a belief was natural, because he who possessed a musket had a fearful advantage over the man who had not one. But modern times have a different and more natural mode of warfare; personal prowess now, as in periods of antiquity, is likely to be victorious; and all necessary discipline can be learned in a very few days. A man does not necessarily acquire either superior courage or address from the colour of his coat, and a soldier with a fixed bayonet has no advantage over a fierce peasant with a well-tempered pike. Almost every victory of modern times has been gained by coming to close action, and that mode, to which a well-regulated army is indebted for success, is as available to a determined band of freemen as to any hired troops in Europe.

‘But, as different animals have different modes of attack and defence, an insurgent army has a discipline of its own, recommended by reason, and sanctioned by experience. With walled towns and close garrisons they have nothing to do: the hills of their country serve them as places of retreat; marshes, rivers, and lakes are their best bastions, while defiles afford them opportunities of attack, and woods and valleys serve them as places of ambush.

‘The face of nature solicits the oppressed to regain their freedom; and certainly, no country on the globe has so many invitations to revolt as our own. Scarcely a mile, from one extremity of the island to the other, in which an hostile army could not be successfully harassed, and, if needful, successfully opposed. To this may be added, that an Irish insurgent army

would materially differ from a similar one in any kingdom of Europe; for nearly every peasant, and certainly every man above the rank of a peasant, is intimately acquainted with the use of fire-arms. Those near the sea-shore (and those are a large portion) are excellent marksmen; while the inhabitants of mountains, and the neighbourhoods of bogs, lakes and marshes, are expert fowlers. The Wexford insurgents, in the late rebellion, gave a proof of their abilities, and showed that the peasantry of Ireland, when aroused, are nothing inferior to the best disciplined troops in Europe.'

'I know it,' interrupted the Exile, 'for I witnessed their skill in bringing down an enemy, and I must confess that, had they leaders of experience, they were nothing inferior, man for man, to any force that might be brought against them.'

'There is always a deficiency,' said I, 'in some part, that renders every effort of the remainder abortive. Out of a hundred revolts, scarcely one has been successful.'

'Pardon me,' said Emmet, 'if I set you right; for history furnishes us with few instances of failure where a nation has been unanimous. It is giving the enemies of man a new weight, to add to the burden of oppression, by dignifying pigmy insurrections and partial rebellions with the name of open revolt. They should rather be called sanguinary riots, and thus reduced to their proper level: their ghosts might not be summoned from oblivious neglect to scare mankind from an assertion of their rights. Instances of national resuscitation are neither few nor unfrequent. Tyranny was expelled from Rome by the rebellion of the people; and Switzerland and the Netherlands are memorials of successful revolts. In our own day, America has shown us what a few thousand peasants could accomplish when actuated by a love of liberty. Ireland is superior in numbers to any of these, equals them in address and courage, and stimulated by wrongs greater than have been experienced by all these together.

'Soldiers are but men, and generally the most imbecile of men. Let the people be taught to despise the glare and glitter of polished arms, and the terror they are wont to inspire will be converted into objects of ridicule and contempt.—Happily an opinion prevails in Ireland, that a soldier is an inferior mortal, and that three hundred athletic peasants would be equal to a regiment of a thousand men. I don't say that this opinion is correct, but it must be admitted that, in case of a rising, it would be of infinite service, as

tending to inspire confidence in the insurgents, and contempt for their enemies—two things that materially conduce to victory.

‘Leaders, in a harassing war, would be easily procured, for the sagacity of an unlettered peasant might serve for the purpose. Who does not remember the servant boy at Oulard, whose advice was followed by the destruction of a whole regiment?—Great occasions produce great men, and generals are formed in the study as well as in the camp. The Catholics are not what they formerly were,—intelligence is diffused, thousands of them are in the British army, and every man of these would desert on the first opportunity, for the *amor patriæ* is not extinguished by the imposition of the military oath.’

Down to the period of 1782, English acts of parliament were suffered to bind Ireland. Misgovernment and poverty, the neglect of agriculture, the prohibition of commerce, the abandonment of manufactures were, during that period, the portion of Ireland. But towards the end of the American war, the volunteers emancipated their country from this bondage, and gave it the means of being independent. The example of America was before both parties with all the omens; hence the demands of the volunteers were prudentially conceded, and the glorious revolution of 1782 was accompanied without the loss of a drop of blood. The happy consequence was the immediate liberation of the commerce of Ireland from English restrictions. Her ensuing prosperity seemed miraculous—so prompt, so general, so enriching; and her aptitude to prosper by a free trade became known at the same time, to her rival and herself.

But the volunteers could not be always in arms, and Ireland had no representative assembly to foster her prosperity during peace. Hers was, alas! a borough-parliament, composed solely of the dominant faction, representing but a small portion of the inhabitants, and having few feelings or wishes in unison with the mass of the people.

Every one soon perceived that all measures of relief would be insecure, nay, illusory, unless preceded or accompanied by a reform in the parliament. The volunteers saw it, and endeavoured to reform; but they excluded the Catholics from their plan, and did not see (unhappy effects of the ignorance of the time!) that this alone would defeat their aim; that they could not erect an edifice of freedom on a foundation of monopoly. Warned by these errors, the United Irishmen altered the system of reform fundamentally. They

extended their base, and established their plan upon three simple principles, necessarily dependent upon each other, and containing the disease, the remedy, and the mode of its attainment. The excess of English influence was the disease, a reform in parliament the remedy, and the inclusion of the Catholics the mode of its attainment.

Theobald Wolfe Tone had, of all others, the greatest part in effecting this change of sentiment among the Protestants, to whose communion he belonged. He wrote the original declaration for the Society of United Irishmen of Belfast, and his powerful writings brought the Presbyterians of the North very generally into the system.

Emmet often heard him in strains of pure and forceful eloquence expand, inculcate and apply, for the benefit of his beloved country, the political principles of the United Irishmen.

Wherever men have had no means of legitimate redress, we have seen them become their own avengers, the worst government being always marked by the greatest commotions. If there be not an impartial administration of justice, the stiletto takes place of the jury, and for want of a government restricted and accountable in Ireland, insurrection and civil war were the resources of an exasperated people. Left without the protection of a national parliament, Ireland was always tyrannically ruled, the frame of society dislocated and broken, and her numerous insurrections were the throes of agonized nature.

But from the moment the protestant reformers recognised the principle that no reform was practicable, efficacious, or just, which should not equally include Irishmen of every religious persuasion, the measure was feasible. It received the assent of the whole nation, save only the established church, and the other dependants of the British government. Its principle recommended itself to the common sense of mankind; and the authority of America proclaimed its benefits. In a short time its way was so far prepared by public opinion that even its interested opponents anticipated its final success. They determined, therefore, upon the desperate expedient of leaving no parliament in Ireland for reform to better. They hastened to buy from the borough-holders that which a truly Irish parliament would not sell—its own existence and the nation's independence. They hoped to extinguish in the abolition of the parliament, every chance of peaceable and constitutional improvement. They conspired to transport it for life,

mutilated and captive, into the British House; to imprison beyond sea, in the abyss of English supremacy, where its languishing, nerveless remains, doomed to live in a perpetual minority, could never more bring to its ill-fated country the blessings of liberty, good government, or commerce.

By the measures of a legislative union, Ireland reverts again to the same wretched state as when bound by acts of the British parliament. On the misery of that state, the ablest men who ever advocated her cause, even other than United Irishmen, have exhausted eloquence and invective, and the brightest page in her history is the one which records the extorted renunciation of that usurped power and plenary right of self-government. The pitiful representation of Ireland in a foreign land can but little avail her for her own benefit. She is there in a minority of one to six. The six give the law to the one, and with that one they have nothing in common. They have other constituents, who are a different people, who have clashing interests, who have national antipathies and who may well feel contempt for the substitutes of that parliament that traitorously sold its country. Such are the legislators who have bound Ireland in fetters.

The consequences are the same as heretofore: discontent and remonstrance, and a proclamation to all Europe, showing how easy it would be to dismember the United Kingdom. No loyalty will reconcile rational beings to preserve an evil which they can exchange for a good; so that those who make Ireland poor and enslaved, set before her, above all other men, the advantages of separation. What can create a desire for this remedy but ill-treatment? And so long as this treatment lasts, how shall that desire discontinue? They stand in the relation of cause and effect, and will for ever go on, or cease together.

It was the opinion of Emmet, that the legislative union was a measure more suited to facilitate the despotism of the ministry than to strengthen the dominion of England. Since the abuse of power has always followed excess, no less in nations than individuals, a restraint upon human actions is salutary for all parties, and the impediment that shall stop the career of ministerial tyranny, will be found to work best for the stability of the connexion. If this operate to the good of Ireland, she will observe it for its utility, an Irish parliament being then its best preservative. If, on the contrary, it be made, as at present, to sacrifice the many for the few, it will

be viewed as a curse by the Irish people—an evil that must be got rid of rather than a good to be embraced and cherished.

At present we see those persons who deny a parliament to Ireland on which to rest her peace and happiness, self-poised and self-protected; we see them sedulous to change the state of the question, and to represent the repeal of the legislative union as a schism in the government. They would limit the people of Ireland entirely to England for benefits—whence, then, have come their wrongs? An Irish parliament, on the contrary, would be a bond of liberal connexion; it would settle every question of domestic policy at home, prevent strife and recrimination between both countries, secure to the affairs of Ireland, a degree of attention which however necessary, they do not and cannot obtain among the weighty concerns of a different people, in a foreign legislature. It would remove the old opprobrious evil of legislation without representation; for wherever this is partial and foreign, it is inadequate: as relates to Ireland, it is worthless mockery. Why was a borough-constituency vicious, but because it sent men to make laws for the people who did not represent the people, who were returned by a different body, and intent upon serving themselves and their employers.

The attributes of genius are not rare among the countrymen of Emmet, and time is constantly developing the resources of mind. The labours of intellect press onward for distinction, while names of high endowments are forced back to make room for new reputation. They alone will be remembered who have acted with an impulsive power on the destinies of their country and kind. Among those who first taught how to overthrow the misrule of Ireland, who exposed its cause and prepared its cure, Emmet is distinguished. He had great influence in the adoption of those measures which are still at issue between Ireland and her foes, and which, in part obtained, in part withheld, are determinative of her future happiness, as they shall finally fall or be signally successful.

The different depots of Dublin, which he hired, were, at his sole expense, furnished with military pikes and handles, ammunition and clothing. In one of these depots, gunpowder was manufactured: in the others, timber was provided for constructing pikes, and those already made, and his other arms and stores were there deposited.

It must be observed of the numerous persons connected with those depots, that neither the certainty of an ample reward, nor the wavering

instability common to men engaged in danger and dangerous designs, could draw the discovery from the impenetrable recesses of their fidelity: an evident proof that the hearts of the people were with the project; or, perhaps it was that the departments of the police of Dublin, were all filled by men who had been deeply engaged in the cruelties of the preceding rebellion, and who, being on that account stigmatized and detested by the people, even those who were secretly inclined to give information, were not willing to unbosom themselves to men whom they regarded with so much horror.

We cannot resist the temptation to insert the following narrative, as illustrative of the cruelties and abominations committed daily, and with impunity, upon the unfortunate people of that dreadful period:

“After walking about a mile, we came to a neat thatched cabin, situated in a very sequestered valley. A river ran before it, and a few aged trees shaded the simple roof. The door was open, and, on our entrance, a peasant rose to receive us. He smiled as he handed me a chair, and looked inquisitively at my companion.

“‘Don’t you recollect Mr. J——?’ inquired the exile. This interrogation was followed by a momentary pause, during which Howlan seemed lost in reflection, after which he burst into an exclamation of surprise and pleasure.

“‘Oh! blud-an-ounze!’ he repeated several times, ‘is this yourself—your own four bones whole and sound after all? Well, well, I knew, I knew I should see you again, though I was certain you were dead; and many is the *pater-and-avi* I said for your soul, though I believe you are a Protestant. But where’s the harm in that? did not you fight like any Roman for ould Ireland? and what more could a real true-born Catholic do? Troth, some of them didn’t do as much, the *spalpeens*, or we wouldn’t have now to begin again.’

“‘So, so, Howlan,’ said the Exile, ‘you haven’t yet learned to be loyal?’

“‘Loyal!’ repeated the hero of Oulard, ‘no, in troth, for it is not in my grain; and faith, I believe if I was paid for it, these stripes on my back would not let me. Oh no, the crows will get white feathers before Denis Howlan will forgive the Orangemen—bad luck to them.’

“‘I recollect,’ returned the Exile, ‘a part of your story, but the apprehensions I was under when I first heard it, prevented me from attending to the whole. Was not your father murdered?’

“‘Murdherd!’ repeated Howlan; ‘ay, murdherd over and over again; and wasn’t I murdherd myself? But,’ he continued, ‘I’ll just tell it all here to you both.’ Then, drawing his stool close to where we sat, he proceeded:—

“‘My father, (Lord be marcful to his sowl in glory!) kept a snug little farm on the righthand side of the road that goes from Gorey to Ferns; and, though I say it, there was not a more *sasty* man in the county of Wexford. I, myself, was the youngest of three sons and two daughters, and the devil a more genteeler family attended Mass of a Sunday than Paddy Howlan’s. My two brothers were able strapping fellows, and faith, there were worse boys in the parish than myself. You may be sure we were real *Crappies*, and why but we should for our religion and country?

“‘The winter before the Rebellion, the Yeo’s^[2] were out every night, and dreadful work they made of it—burning, whipping, and shooting.—A poor Catholic couldn’t live at all at all; and, as we expected that they would give us a call; we hid our pikes and guns in the ditches, and, to be sure, appeared as innocent as lambs. I shall never forget the 15th of November; no, never, while there is a drop of Irish blood in my soul; for, when I think of it, my brain boils, and my very flesh creeps, as if there was a blister all over me. Well, as I was saying, on the 15th of November, I was coming home from Enniscorthy market; and being after taking a glass of the *creature* with one friend or another, I was pretty merry, and to make the road light, I was singing ‘*The Victim of Tyranny*,’ and the ould mare a-self was so pleased with the tune, that she kept the track as straight as a die, though the night was as dark as pitch.

“‘Just as I came to the top of the *boughareen*, that led down to our house, a fellow seized my beast by the halter, and while you’d be looking round you, a score of bayonets was ready to pop into poor Denis. “Hallo!” said I, “what’s this?” “You Popish rebel,” cried the officer, for it was a party of the North Cork, “what song is that you were singing?”

“Och, nothing at all,” said I, “only new words to an ould tune.”

“Ah! then, by ——,” said he, “you shall soon sing another tune, unless you tell us of all the people you know to be United Irishmen.”

“Faith, and that’s what I can soon do,” says I, “for I know nobody.” The word wasn’t well out of my mouth, when he ran his sword into my arm, saying, “That’s a tickler to help your memory.” “Thank your honour,” says I, “but as ye are not Yeo’s, I hope you will act decent, and let a poor boy

pass. My name is Howlan, and never did any man an injury.”—“Howlan!” cried the officer, “you are the very man we want. Have you not two brothers?” “Ay, and a father too,” I answered, quite calmly, though I was in a terrible pickle, with the blood streaming down my arm.

““I was then bid to drive down to my father’s house, and they all kept quite close to me. The family were all in bed, and I, foolish enough, called up my poor father, then seventy years of age, and my two brothers. They came out into the lawn in their shirts, for they were so frightened they forgot to put on their clothes, and if they hadn’t, they could not, for want of time.

““My father said he had no arms; and when he protested, which was the truth, that he was no united man, the sergeant knocked him down with a pistol, and some of the soldiers began kicking of him while he lay on the ground. My brothers, of course, (for what Christian would turn informer?) refused to confess anything, and accordingly, the eldest was taken and tied to a car, and a drummerboy proceeded to flog him at a desperate rate, while one of the party, to give him light, set fire to the barn. As the flames mounted up to the skies, I could see my brother’s back, hackled like a raw griskin, while the poor fellow refused to gratify his murderers with a single groan. My mother rushed out, and falling on her knees, beseeching the villains to forbear, but one of the soldiers gave her a kick in the stomach, and stretched her on the pavement.

““Knowing how soldiers then treated young girls, I made signs to my sisters, who had come to the door, to shut it, and remain inside. They did so, before the soldiers could prevent them; and one of them having seen what I had done, told the others, and in a minute there were a dozen stabs in my body. My eldest brother was then released, and the other tied up in his place, when my father, who had recovered, rushed forward and seized the drummer’s arm. Poor man! the savages had no pity on his tears, and he received several stabs!’

““Here Denis was overpowered by his feelings, and after hastily wiping away one or two natural drops from his cheek, continued.

““I was now questioned about united men, and arms, and as I also refused to make any discovery, they took and bound my hands behind me, and then, taking the halter from the mare’s head, they placed it round my neck, and raising the car up, hung me out of the back-band. They were too cruel to let

me die a natural death, and so cut me down a few minutes afore I went to Paradise. I can't tell anything about that time, but my ould mother told me that my face was as black as a pot, and my tongue a *bundle* long. The first thing I recollect, after being hanged, was to see the poor ould house in flames, the soldiers having set fire to it, to get my sisters out, but they were disappointed, as the girls had made their escape while they were hanging me.

“‘To make a long story short,’ continued Denis, ‘my father, myself, and two brothers, were thrown into the cart, and marched off to Ferns. Next day my father died in the guard-house; and after a week’s confinement, my brothers and I were turned out with pitched caps upon our heads.^[3] We had now no house, no home, for my father’s life being the term of the lease, the landlord had seized on our little all, and so we went to service, as did my sisters, my mother having died in a month after my father. My brothers were long before they recovered; and for myself, I’ll feel the effects of that bloody night to the day of my death.’

“The tale of this untutored peasant, told in his own vulgar, but expressive language, produced a painful interest on my feelings, while it excited my indignation to that degree of frenzy, which made me instantly determine upon the Quixotic resolution of finding out the office under whose command the family of Howlan had been tortured, and call him to an account or, at least, expose him to the world. Filled with this extravagant notion, I inquired of Denis, as we walked along, where the North Cork were now stationed.

“‘Lord bless your honour,’ replied Denis, ‘there’s not a man of them in the land o’ the living, for I was at the killing of them all myself—and quick work we made of it—on Oulard Hill.’

“‘Oh, I remember,’ said I, ‘Mr. J—— spoke of your generalship there. How was that?’

“‘Why,’ replied Denis, ‘when I went to sarvice, my master lived in the very parish with Father Murphy, who, God bless him, coming one day through Ferns, saw the Yeo’s shooting poor Catholics like dogs, trying how many of them a musket ball would go through at once; so in the evening he called his congregation together in the chapel. It was as dark as *bags*, and not a candle lightning to show us the way to say our prayers. We were all silent as death, and you could hear a pin drop on the floor while the priest

was speaking. He tould us 'twas better to die fighting for our religion and country, than be butchered like sheep by the Orangemen. He said what was Gospel, and faith we took his advice, and marched in fine order after him, and he in the middle of us to Oulard Hill, where we encamped for the night. The Yeo's fled like murder at the sight of us, for they are the greatest cowards in the world, and sent the sogers to frighten us: but faith, their day was passed, and once we burnt the candle, we'd burn the inch. When the red coats appeared, our faces were all manner of colours, and many proposed to run away. 'No, no,' says I, 'the priest and God is with us, and what have we to fear? Here is a ditch and gravel hole, and lie in them till the sogers come quite close, and when I cry out *Erin go bragh*, let every man start up, and use his pike.' My advice was taken, and Father Murphy blessed us all. The sogers come up, sure enough with a fellow like a turkey cock strutting before them on his horse, and when they came quite near the ditch, he went behind them, and we could hear the words, "Ready, present, fire!" Pop, pop, pop, went their muskets; but faith I shouted out like a lion, *Erin go bragh*,^[4] and it would do your heart good to see what sport we had. They weren't a breakfast for us, and I had the pleasure, thank God, of sticking my pike into the rascally lieutenant, who murdered myself and my father."

Government had, by the month of June, discovered sufficient to quicken its diligence, and the officers of the police appeared thenceforward more alert and vigilant; notwithstanding which it was difficult to bring them to believe that the project of insurrection was on foot. This state of delusion continued until the fourteenth of July, the anniversary of the French Revolution, which opened the eyes of many, and excited a considerable degree of alarm. Bonfires were publicly made in commemoration of that event, and collections of people, apparently strenuous and decided, formed and partook in the festivity. On the sixteenth, the depot of powder in Patrick Street blew up, in which there were two men nearly suffocated; one of whom, in throwing up the window, cut the artery of his arm, and bled to death, the other was taken prisoner. Emmet was so alarmed at the discoveries this explosion would lead to, that he quitted the house in Butterfield-Lane, and took up his permanent residence at the depot in Mass-lane. He there had a mattress to sleep on, that he might be present night and day to direct and animate the workmen.

The interval of the seven days ensuing after the explosion, was employed by Emmet and his associates either in deliberating on the propriety of immediately flying to arms, or in concerting the most practicable mode of commencing their operations. It was ultimately agreed upon to seize the several depots and arsenals in the vicinity of Dublin; and above all, it was universally determined to gain possession of the castle, as, in that case, it was supposed they could more decidedly influence the public mind by having the seat of government in their power.

As the day of attack approached, the greater part of Emmet's adherents, contemplating their danger, wished to defer the attempt. Emmet, however, was peremptory in the opposite way of thinking. He represented, with an impetuosity not to be resisted, that the militia was about to be embodied; that the country would be placed every day in a more unassailable posture, and by its multiplied measures of defence, become impregnable.

The reader will probably not be displeased with the following extract from the pen of the same writer whom we have so often quoted, as illustrative of the kind, generous, and unsuspecting character of Emmet, even under the most difficult and trying circumstances.

'I learned from Denis that the conspirators met in a valley not far from where we were, and that he was hastening to join them: I signified my readiness to attend him; and, as Denis was not a man of ceremony, he did not stand long upon punctilios, but immediately conducted me across a heathy and desolate hill, towards the place of rendezvous.

'The night had closed around us as we approached a mountain chasm, and, after scrambling through a rude aperture in a stupendous rock, we found ourselves in a kind of natural recess, formed by an amphitheatre of surrounding hills, whose overhanging acclivities frowned in gloomy horror upon the little valley. By the light of the stars we could discern some persons, who had entered before us, proceeding towards the opposite side, and we accordingly followed in their footsteps. We had not proceeded far when the voice of a person speaking fell upon our ears, and I had not to listen long before I recognized the deep, but harmonious accents of my friend Emmet, as he addressed the people around him, who appeared to be about the number of five hundred. His harangue was on popular topics, of Irish grievances, and he spoke with a fervency of manner that showed him sincere in the sentiments he uttered. When he concluded, Malachy took his

station, and proceeded to address the peasantry. I could not but observe in his speech, superior ingenuity. Emmet was more eloquent, but less artful; more impassioned, but less logical. There was sincerity in every word he uttered, and patriotism appeared to predominate in every measure he recommended, whilst humanity breathed throughout his discourse. But Malachy addressed himself directly to the passions, and so intimately blended religion with politics, that his auditors could scarcely suppress the operation of their feelings, and when he concluded, an involuntary burst of applause followed.

‘Denis, who had listened with the utmost attention to both speakers, now took me by the hand, and led me into the throng. Malachy cast his eye upon me, and instantly exclaimed, ‘A Spy!’

‘A Spy!’ was re-echoed by a hundred voices, and in a moment the deferential horror of all present caused a circle to be formed around me, every man being eager to get as far as possible from what he considered the contagion of my presence.

The indignation I felt at Malachy’s imputation for a moment deprived me of speech, and felt as if riveted to the place, when Emmet kindly stepped forward and took me by the hand. ‘My friends,’ said he, ‘there is some mistake; Mr. K—— is a young man of liberal principles, and high notions of honour, and I am certain that he is incapable of betraying our secret, much less acting as a spy upon our proceedings.’—‘You do me but justice,’ I replied, ‘for I came here this night to learn if your cause was such as required or deserved the assistance of a freeman’s arm, and not basely to betray my countrymen, for I trust those that surround me will not refuse me the fraternal embrace because I was born in England, while my parents and heart were ever Irish.’ This remark elicited much applause, and I proceeded: ‘I trust that the person who has imputed such a base motive to my presence here has mistaken me’—

‘You are right, Godfrey,’ interrupted Malachy, with the utmost familiarity, ‘I did indeed mistake you for another person.’

‘I thought as much,’ said Emmet, ‘and let us now rejoice that our cause, the noblest in which man was ever engaged, has received the acquisition of a pure spirit, who feels indignant at our wrongs, and who burns to avenge them.’

After this conference, many of his partisans slunk away, and declined all farther participation in the affair; others, however, and those the majority, resolutely determined to follow the fortunes of their beloved leader, and declared that they would not desert him although they advanced with the certainty of utter destruction to themselves or their cause. The die was cast, and all further reflection was repelled by the ardour and firmness of resolution.

Fortune, on this occasion, not to be accused of fickleness, seems never, from his first embarking on this desperate adventure, to have been for a single moment, auspicious to the devoted Emmet. His negotiation with Dwyer had failed, and a plan, even more specious, and on which he now grounded the most sanguine hopes of success, proved equally fallacious. A part of the plan of general attack determined upon, was to force the batteries and stores at the mouth of the harbour of Dublin, by the assistance of those working people from the counties of Wicklow and Wexford, who in the months of June and July, repair in considerable numbers, for the purpose of hay-making, to the neighbourhood of Dublin. The minds of this class of men appeared by no means more softened, nor their passions less alive to every motive of discontent, whether real or imaginary, than they were at the period of the rebellion in 1798, which they had principally supported; and the daring conduct of which had prepared and habituated them for similar encounters; their enmities were fierce and vehement; their courage and resolution undoubted; it was therefore natural that they should be selected as most useful and valuable auxiliaries. For some time they had manifested the most cordial concurrence; but on the 22d of July, the day before that appointed for action, they, for some cause unknown, formally declared their abandonment of the design. They did not, however, accompany their refusal with any discovery of the plot.

For some days prior to the 23d of July, Emmet passed entirely in his depot, reposing at night on a mattress thrown upon the ground, amid the implements of death which he had there collected.

In a back house, recommended by its secluded and uninviting situation, were about a dozen men at work; some busy making cartridges, while others were casting bullets; some fabricating rockets, and others making pikes. The heaps of muskets, and other warlike weapons, scattered around, served to inspire a feeling of awe in the gloomy mansion of incipient

treason, singularly contrasted with the thoughtless levity depicted upon the half-intoxicated countenances of those engaged in preparing the instruments of death.

My friend, on seeing all safe, could not conceal his satisfaction; and having distributed some money amongst the men, he dismissed them. As they withdrew, he bolted the door, and throwing himself upon a rude seat, seemed lost in the intensity of his feelings. I was not less serious; for the workmen, the arms, and the gloom of the place, had deeply affected my spirits, and brought upon my mind a desponding impression, not unmixed with sensations of fear.

“My friend,” said Emmet, after a silence of several minutes, “how ungrateful are mankind! how thoughtless are nations! The philosopher is neglected, and the patriot unhonoured; yet, without knowledge and liberty, how valueless all the possessions of man! How little do those who profit by wisdom, or glory in the possession of freedom, know of the student’s privations, or the conspirator’s danger! and without study and treason, how few could be either wise or free? Nations, exulting in the enjoyment of their rights, but too often forget those to whom they are indebted for the blessing. Englishmen continually boast of their liberty, yet how many Britons are the names of Sydney and Hampden as vague as those of Gallitzin and William Tell? The sound is familiar, but it scarcely raises a single association.

“The hope of applause,” I replied, “though it may stimulate our exertions, should never be allowed to direct our actions, and he that is honoured by the discerning may readily dispense with the plaudits of the vulgar.

“True,” he returned: “but those who benefit mankind may at least expect gratitude; and, if the danger encountered by the patriot may be allowed to enhance the debt, I know of none who has so large a demand as the conspirator, whose object is universal good. After once he imparts his schemes to others, he lives in continual apprehension; every stranger is an object of suspicion; every incident is pregnant with danger. The mistakes of his friends may ruin him, and a concealed enemy may lurk amongst his associates; for, as his designs require numerous abettors, it is very difficult to select many men without including some traitor; and one informer is sufficient to blast all his hopes—as a single spark will cause the explosion of the largest powder magazine. I have latterly felt so acutely the

uncertainty of my situation, that I am determined to hasten the event of our plan; for any conclusion would be preferable to protracted suspense.

“I know not,” I replied, “whether it is desirable to persist in your scheme, for the reasoning of our friend, the Exile, never appeared to me so rational as since I entered this depot of Rebellion. A thousand thoughts start up in my mind, which I can neither allay nor satisfactorily account for. These scattered instruments of destruction proclaim, that in the event of an insurrection, numbers must die; but how many are to taste the bitterness of death defies human calculation. Ourselves, too, may be among the fallen, and, what is more, the cause may be unsuccessful.

“All these,” interrupted Emmet, “depend upon events and circumstances, about which we can know nothing positive; ’tis for us only to ascertain the probability of success, and to persevere in the course which honour and duty point out. Enough for us to know, that Ireland requires the standard of revolt to be raised by some one, and that neither defeat nor triumph can add to or diminish our consciousness of rectitude. Impediments may crowd the long perspective before us, but beyond these are glory, honours, and immortality—rewards, for obtaining which no sacrifice is too great—no enterprize too dangerous.

“Let not,” he continued, “my apprehensions, too carelessly expressed, damp the ardor of your soul, for the reasons which first induced you to embark in this best of causes are the same now as then, whatever arguments you may have heard to the contrary. We are young and unincumbered; defeat can neither distress our friends nor ruin ourselves, for what have we to lose but life? And life is held on so uncertain a tenure, that a thousand daily accidents may deprive us of it, and that too so suddenly and so soon as to leave our memory without an accompanying deed to keep it afloat on the stream of time. Admitting for an instant that we shall (which Heaven forbid!) be unsuccessful, think not that our endeavours will be forgotten, or that our country will cease to remember us. No, my friend, the tyrant laws may condemn us, and tyrant authority asperse and vilify our characters; but rely on it that Irishmen shall reverence the names of K—— and Emmet while patriotism has admirers, or Ireland a friend. Our country has never been ungrateful, and so few have been her benefactors, that she is prodigal of thanks for even dubious favours. Of us she can have but one opinion, for ingenuous enmity cannot attribute any but laudable motives to our designs.

For Ireland I will spend my private fortune, and for Ireland I shall, please God, venture my life. Kosciusko is a name as beloved in Poland as that of Washington in America.

“But reverse this gloomy picture, and look—as humanity should ever look—upon the bright side of things; for defeat does not always terminate daring enterprises. Reflect upon the consequences of success; our enemies vanquished, our arms triumphant, and Ireland free! Our names associated with the liberators of nations, and ourselves overwhelmed with the grateful benedictions of an emancipated people. Our youth will increase the general wonder, and the means by which we shall achieve such illustrious actions will augment the pleasing amazement. Add to this the exalted stations we shall occupy, and the joyful approbation of our own bosoms; and tell me, is not our present situation, taking all things into account, one that might well be envied? Defeat cannot deprive us of honor, nor death of glory; while success, if obtained, has in store for us all those rewards which ever graced the most fortunate of mankind.

“Opportunities for great actions,” says the moralist “occur but seldom, and surely he ill deserves honour who lets the opportunity pass when it presents itself. Glory has found us, and let us embrace her; the tide of our affairs is at the flood, and let us embark upon the waves of fortune: we are all attended, and Heaven seems propitious. A thousand years may pass, and a more favourable moment may not again occur.

“What, still thoughtful? Oh, I see, Miss J—— has whispered something into your ear which has operated unfavourably upon your mind. Well, I can excuse you, for a being of such perfect loveliness might well disturb a hermit’s prayer, though I will not allow her to divert a patriot’s purpose.”

“Then,” said I, “you will not pardon love in a conspirator?”

“I can not only pardon it,” he replied, “but sincerely wish that the tender passion may be always blended with the *amor patriæ* for he that anticipates the commendation of a beloved mistress, can never act dishonourably. My friend,” he continued, rising, and taking me by the hand, “I, too, have one whose praise I wish to merit, and whose exaltation, next to my country, is the first wish of my heart. She is kind, she is lovely, and Heaven only knows how good!”—

“And yet,” I interrupted, “you would fling away this jewel, without having the untutored Indian’s apology, for you know its value.”

“I know its value,” he rejoined, “and, because I know it, I wish to place it where its worth may be appreciated. The stagnant vale of inglorious ease is for those domestic enamoured souls who are content to pass a life of inactive worthlessness, and who wish to enjoy affection without having merited love. Mine is a higher ambition: I must make myself worthy of the woman of my choice, and the glory which shed its lustre on the husband shall reflect its splendour on the wife. Heaven forbid that an excusable passion should thwart the great design of my life, or cause me for an instant to neglect my country’s good, for the purpose of promoting my own personal advantage. What earthly possession could equal the glory of having freed Ireland from foreign domination? and, though failure might partially obstruct its rays, we never can be deprived of the consciousness of having deserved it.”

His magazine was by no means despicable. It comprised the following warlike implements: 145 lbs of cannon powder, in bundles—eleven boxes of fine powder—one hundred bottles filled with powder, enveloped with musket balls, and covered with canvass—two hundred and forty-six hand grenades, formed of ink bottles, filled with powder, and encircled with buck shot—sixty-two thousand rounds of musket ball cartridge—three bushels of musket balls—a quantity of tow mixed with tar and gunpowder, and other combustible matter, for throwing against wood work, which, when ignited, would cause an instantaneous conflagration; sky rockets, and other signals, &c., and false beams filled with combustibles; with no less than twenty thousand pikes.

This super abundance of ammunition is an evident proof of Emmet having promises of large supplies of men, in which promises he was fatally disappointed; for, instead of having a force of thousands at his command, he could only muster a few hundred on the evening of engagement.

On the morning of the appointed day for this momentous enterprise, the Kildare men were seen directing their hurried steps towards the capital. They had collected about the depot in Marshalsea-lane and Thomas-street, in unusual crowds, when about five o’clock they were persuaded by their officers to return home. This, with the defection of the Wicklow and Wexford labourers, would have deterred a less ardent spirit than that of Emmet’s from proceeding. His, though damped, never quailed under the

danger that this disappointment was likely to bring on him and his followers.

Towards dusk he directed the distribution of pikes amongst the waiting crowds in Thomas-street, and proceeded to make the necessary arrangements for the contemplated attack.

On the night of the 22d, we assembled at the depot, and, though every thing wore a gloomy aspect, resolved to persevere. The different leaders received their instructions; some were to assemble their forces in the Barley Fields, now Mountjoy Square, some on the Coal-Quay, and others in different parts of the town. These were to act only in case of seeing a third rocket, which Emmet was to send up when he considered the time arrived for the commencement of hostilities. Emmet, Malachy, Bryan, and I, were to head the forces which were to attack the castle.

Every thing being thus arranged, I bid my companions farewell for the night, and returned to my lodgings. I could sleep but little, and when I awoke the next morning, the consciousness of being on the eve of a great event, filled my mind with gloomy apprehensions. To reflect, however, was now useless, and without giving my thoughts time to inform against my purpose, I hurried to the depot, where I found all in confusion. The place was thronged by insurgents, who had arrived from the country, and whose presence served to obstruct the workmen. Malachy and Emmet, with astonishing firmness, gave directions; and I was handed the printed proclamation to read.

As I looked upon the expressive countenances of the desperate and infatuated men around me, I could not resist the gloomy prescience which the scene was calculated to impart. It was a moment I would not wish to go through again, there was so much of foreboding evil—so much of personal misfortune to be apprehended—and so much toil and peril which must be endured, whether the rebellion triumphed or was crushed. My imagination, like a prism, collected all the rays of evil from probable discomfiture, and showed me, in aggravated horror, all the dangers I had to encounter. However, to recede was now impossible, without incurring the imputation of cowardice, or what was more intolerable, the suspicion of my associates. Actual hostility was preferable to either of these; and, making a virtue of necessity, I recalled the memory of those conspirators who had been successful, and fortified my resolution by anticipating the same fortune,

though every thing around might have taught a rational man the extravagant folly of hoping to subvert a powerful government with a few hundred men, partially armed. These, it is true, we thought, had only to raise the standard of rebellion, and thousands were ready to support it, but in future, who will rely upon the promises of conspirators?

About six o'clock, Emmet, Malachy, one or two others, and myself, put on our green uniform, trimmed with gold-lace, and selected our arms. The insurgents, who had all day been well plied with whiskey, began to prepare for commencing an attack upon the Castle; and when all was ready, Emmet made an animated address to the conspirators. At eight o'clock precisely, we sallied out of the depot, and when we arrived in Thomas-Street, the insurgents gave three deafening cheers.

The consternation excited by our presence defies description. Every avenue emptied its curious hundreds, and almost every window exhibited half a dozen inquisitive heads, while peaceable shopkeepers ran to their doors, and beheld with amazement a lawless band of armed insurgents, in the midst of a peaceable city, an hour at least before dark. The scene at first might have appeared amusing to a careless spectator, from the singular dubious character which the riot wore; but when the rocket ascended, and burst over the heads of the people, the aspect of things underwent an immediate and wonderful change. The impulse of the moment was self-preservation; and those who, a few minutes before, seemed to look on with vacant wonder, now assumed a face of horror, and fled with precipitation. The wish to escape was simultaneous, and the eagerness with which the people retreated from before us impeded their flight, as they crowded upon one another in the entrance of alleys, courtways, and lanes; while the screams of women and children were frightful and heart-rending.

"To the Castle!" cried our enthusiastic leader, drawing his sword, and his followers appeared to obey; but when we reached the Market-house our adherents had wonderfully diminished, there not being more than twenty insurgents with us.

"Fire the rocket!" cried Malachy.

"Hold awhile" said Emmet, snatching the match from the man's hand who was about applying it. "Let no lives be unnecessarily lost. Run back and see what detains the men."

Malachy obeyed; and we remained near the Market-house, waiting their arrival until the soldiers approached.

“Our cause is lost!” exclaimed Emmet, snatching the rockets from the man’s hand who carried them, and trampling them under his feet, he continued, “Let our friends at a distance escape comrades, provide for your own safety.”

A skirmish now ensued, and we succeeded in forcing our way into Francis-street, but had not proceeded far before we saw another party of soldiers advancing against us from the Coombe.

“This way sir!” cried a voice I had heard before, and Denis Howlan seized my arms, and pulled me into a street (Plunket-street;) full of old clothes shops. About a dozen doors down we turned into a shop, Denis asked as we entered, “Friend or foe?” “Friend!” cried an old man, hurrying us into a back parlour, and then up stairs. “The roof, the roof,” he whispered; and accordingly we made our exit through a dorman window. In the gutter, between the houses, we found three men, who had sought that place of safety; and, having also danger to apprehend, we took like them a recumbent posture.

Throughout the night our ears were assailed with noises like those of a town suddenly attacked—bells ringing—drums beating, and all the clamor of war—while an occasional shot announced that our danger was not over. My companions sent up incessant prayers for the safety of their enthusiastic leader, and, as I loved the man, I heartily joined in their observations.

It was during the progress of the insurgents from the depot, that the attention of the rear was diverted by the arrival of an equipage; a moment’s enquiry satisfied the mob it was that of the lord chief justice of Ireland. A halt was instantly called, disorder and tumult prevailed; the heads of the advancing party immediately returned upon their steps, and the massacre of the venerable Lord Kilwarden was called for and committed by some cold-blooded ruffians amongst them!

It is universally agreed that the murder of this excellent man was the unpremeditated act of a ferocious rabble; but there are various accounts of their probable motives in wantonly sacrificing so upright and humane a judge to their fury. A popular explanation of this is, that the perpetrators mistook him for another person. There is also an account which admits the mistake in the first instance, but sub-joins other particulars, which appear

sufficiently probable; and as some of the facts, of which there is no doubt, reflect the highest honour upon Lord Kilwarden's memory, the whole shall be here given.

In the year 1795, when he was attorney general, a number of young men (all of whom were between the ages of fifteen and twenty) were indicted for high treason. Upon the day appointed for their trial, they appeared in the dock wearing shirts with tuckers and open collars, in the manner usual with boys. When the chief justice of the King's Bench, before whom they were to be tried, came into court. and observing them, he called out, "Well, Mr. Attorney, I suppose you're ready to go on with the trials of these *tuckered* traitors?" The attorney-general was ready, and had attended for the purpose; but indignant and disgusted at hearing such language from the judgment seat, he rose and replied, "No, my lord, I am *not* ready; and (added he, in a low tone to one of the prisoner's counsel who was near him) if I have any power to save the lives of these boys, whose extreme youth I did not before observe, that man shall never have the gratification of passing sentence upon a single one of those *tuckered* traitors." He performed his promise, and soon after procured pardons for them all, upon the condition of their expatriating themselves for ever; but one of them obstinately refusing to accept the pardon upon that condition, he was tried, convicted and executed. Thus far the fact upon credible authorities; what follows is given as an unauthenticated report. After the death of this young man, his relatives, it is said, readily listening to every misrepresentation which flattered their resentment, became persuaded that the attorney-general had selected him alone to suffer the utmost severity of the law. One of these, (a person named Shannon) was an insurgent on the 23d of July, and when Lord Kilwarden, hearing the popular cry of vengeance, exclaimed from his carriage, "It is I Kilwarden, chief justice of the King's Bench!" "Then!" cried out Shannon, "you're the man that *I* want!" and plunged a pike into his lordship's body.

It was at this period, it is asserted, that Mr. Emmet, and the other leaders, who had been somewhat more than an hour engaged in a task far beyond their powers, retired in despair at finding all command disregarded, all efforts to produce subordination ineffectual; and their favorite project of seizing the castle rejected for the slightest opportunity that occurred of indulging the predatory disposition of their associates to rapine and murder. It has been urged in their favour, that shocked and disgusted at the murder

of Lord Kilwarden, the chiefs instantaneously came to the resolution of abandoning their unprincipled followers.

A detachment of the regular army coming up now, commenced a brisk fire on the remaining insurgents, and obliged them, after a short resistance, to seek safety in flight. A party of soldiers, stationed at the Coombe, under Lieutenant Douglas, was attacked by the mob who were retiring from Thomas-street, and made to give way after a severe skirmish. At this attack the bravery of a venerable old man shone conspicuous; his son was attacked and sorely pressed by the bayonet of one of the soldiers, and would inevitably have been sacrificed, had not the parent, who saw his danger, stepped in and received the blow intended for the son.

The soldier suffered the fate he gave; he was piked instantaneously by the infuriate youth, who retired with agonized feelings, leaving the two bodies side by side,—sad mementos of the effects of bad laws and misgovernment. It was never exactly known the numbers of lives lost on this night; it is supposed, however, there could not be less than eighty, including the loss on both sides. Emmet fled to the mountains; he arrived in time to prevent a contemplated rising of the insurgents. Immediately after, he and the other leaders in the conspiracy met in a glen in the Wicklow mountains, to consult on plans of future operations.

“We had just gained the ascent of a lofty hill, on our way to the place of meeting, when a shrill whistle, apparently not far distant, brought us to a full stop, and in an instant, a dozen men started up, as if by some magical agency from the heath around us. “Your name and business?” demanded a gloomy-looking figure who stood before us, wrapped up in a great cloak.

“Our names and business?” repeated Denis: ‘maybe we’ve neither; what would you have then?’

“Your life!” replied our interrogator, approaching us with a pistol in each hand. “Hold!” exclaimed a man rushing between us, “these are friends. You *spalpeen*, don’t you know Denis Howlan?”

“Faith, Captain Dwyer,” said my companion, with the utmost *sang froid*, “it just is Denis Howlan himself, and this is a real friend of Giniral Emmet, though it is not himself that’s in it as he hasn’t got on his own clothes.”

“No matter for that,” replied Dwyer, “hasten to the glen. The council are meeting, and I am here to prevent intruders—pass on—good night—Babes^[5] to your cover.”

In the glen, as the outlaw had informed us, we found several persons assembled; and when my name was announced, one of them advanced from a circle formed round him, and seized my hand—it was the unfortunate enthusiast, Robert Emmet. His manner was most kind and affectionate, and he congratulated me, with every demonstration of sincerity, on my escape from the slaughter of the preceding evening. He lamented the fate of Malachy and Bryan, and seemed deeply affected at the discomfiture of his scheme.

I soon learned that my friend, with some others, had escaped to these hills on Saturday night, in time to prevent a contemplated rising of the insurgents; and had met, this evening, the leaders in the conspiracy, to consult on plans of future operations. Most of them recommended vigorous measures; and strenuously advised an immediate attack on Wicklow, Arklow, &c. stating that all the kingdom was ripe for revolt. The time had passed for Emmet to credit such sweeping assertions, and though he did not contradict his friends, he unhesitatingly condemned the having any further recourse to hostilities. “For,” said he, “defeated in our first grand attempt, all further endeavours must be futile. Our enemies are armed; our friends are dispirited; and our only hope is now in patience. The justice of our cause must one day triumph, and let us not indiscreetly protract the period by any premature endeavours to accelerate it. No doubt I could, in forty-eight hours, wrap the whole kingdom in the flames of rebellion; but as I have no ambition beyond the good of my country, best study her interest, and the interest of freedom, by declining to elevate my name upon the ruin of thousands, and afford our tyrants an apology to draw another chain around unhappy Ireland. In revolts, the first blow decides the contest,—we have aimed one, and missing the mark, let us retire unobserved, and leave the enemy ignorant of the hand that was raised for their destruction. Impenetrable secrecy surrounds all our measures; the loss we have sustained is inconsiderable; and, unacquainted with their own danger, and the extent of our resources, the tyrants of Ireland will relapse into false security, and afford us, perhaps, sooner than we imagine, another opportunity to attack the hydra of oppression. Let me, therefore, my friends, advise you to act with that prudence which becomes men engaged in the grandest of all causes, the liberation of their country. Be cautious, be silent, and do not afford our enemies any ground for either tyranny or suspicion;

but, above all, never forget that you are *United Irishmen*, sworn to promote the liberty of your country by all the means in your power.

“I have now relieved my bosom from a load of apprehension, and in preventing the revolt of last night from assuming the form of rebellion, I am conscious of having saved the lives of thousands of my fellow-countrymen. When the libeller of my name and intentions shall charge the blood of yesterday to my memory, I hope there will not be wanting some one to recollect, that if a little has been shed through my means, I have saved the effusion of one hundred times as much, on which I might have floated to a disreputable notoriety.

“Over my future destiny Fate has thrown a veil which mortal eyes cannot penetrate. Should I succeed in evading the pursuit of my enemies, you may expect to see me once more armed in the cause of Ireland; but should I fall on the scaffold, let not the coward or the knave intimidate you from again and again appealing to Heaven in behalf of your rights and liberties by appealing to my recent failure. Oh! I beseech you, as friends and fellow-patriots, to believe me, and in the name of our common country I charge you to transmit it to your children, that, had I only one thousand pounds more, and another thousand men, I had overthrown the temple of despotism, and given liberty to Ireland. My plan was an admirable one, but there was failure in every part, and from these defects let future patriots learn to prevent similar consequences. Our attempt will not be unproductive of good; our government will learn from it, that they will never be secure while an *Emmet* is in existence, and the conspirator will see, that tens of thousands may know his secret without even one being found capable of betraying it. Gentlemen, you will now look to your own safety, and as for me, I shall do the best I can to quit the country, in the hope of again meeting you under more happy auspices.”

He spoke in a subdued and feeling tone, and as he bade them all farewell, he appeared deeply affected. After some hesitation, his advice was acquiesced in, and the assembly began to separate, two and three at a time.

Emmet was now pressed to make his escape before government obtained information respecting his place of concealment; an opportunity then offered of his doing so, as several fishing smacks lay off the coast, the owners of which were insurgents. He replied to his friends who were pressing him:—

“I shall follow your advice in a few days; but I cannot yet quit Ireland. Excuse my obstinacy, but there is one to whom I must bid an eternal farewell, before the terrors of government shall force me into exile. Why should I refuse to acknowledge the cause? for I am not ashamed of a weakness that compels me to do an act of justice—to beg, and, if possible, to obtain forgiveness from a woman whom I have unintentionally injured—whom I have loved so well, that I must once more see her, hear her, and converse with her, though ten thousand deaths awaited on the interview. You now see, my friends, the cause of my not complying with your advice, and though you should condemn my notions as extravagant, I cannot consent to forego my resolution.

The lady to whom poor Emmet was so enthusiastically attached, was the youngest daughter of the celebrated Curran; and, if report may be credited, she was every way worthy of a heart so fond, so gentle and so noble, as that of Robert Emmet.

Emmet returned towards Dublin on this very romantic business. To bring about the wished-for interview, he wrote several letters from his lodgings at Harold’s Cross, which he again took on this occasion.

While anxiously expecting an answer to his letter, the house he was in was suddenly surrounded by police officers, headed by Major Sirr, who, rushing into the apartment, seized him as he was sitting down to dinner.

Mr. Curran, in the case of *Hevey v. Sirr*, thus characterizes this notorious individual:—

It was at this sad crisis (1798) that Major Sirr, from an obscure individual, started into notice and consequence. It is in the hot-bed of public calamity that such inauspicious products are accelerated without being matured. From being a town-major, a name scarcely legible in the list of public incumbrances, he became all at once invested with all the real powers of the most absolute authority.

With this gentleman’s extraordinary elevation began the story of the sufferings and ruin of Hevey. A man was prosecuted by the state; Hevey, who was accidentally present at the trial, knowing the witness for the prosecution to be a person of infamous character, mentioned the circumstance in court. He was sworn, and on His evidence the prisoner was acquitted. In a day or two after, Major Sirr met Hevey in the street, asked how he dared to interfere in his business? and swore, G—d, he would teach

him how to meddle with ‘his people.’ On the following evening poor Hevey was dogged in the dark into some lonely alley—there he was seized, he knew not by whom, nor what authority—his crime he soon learned: it was treason he had committed against the majesty of Major Sirr. He was immediately conducted to a place of imprisonment in the castle yard, called the provost. Of this mansion of misery, Major Sandys was the keeper. Here Hevey lay about seven weeks, he was at last discovered among the sweepings of the prison. ‘Hevey,’ said the Major, ‘I have seen you ride, a smart bit of a mare—you can’t use her here—you had better give me an order for her.’ Hevey, induced by hopes and by fear, gave the order. The major accepted the order, saying, ‘your courtesy will not cost you much—you are to be sent down to-morrow to Kilkenny, to be tried for your life—you will most certainly be hanged, and you can scarcely think that your journey to the other world will be performed on horseback. Hevey was accordingly transmitted to Kilkenny, tried by a court martial, and convicted upon the evidence of a person under sentence of death, who had been allured by a proclamation, offering a reward to any man who would come forward and give any evidence against the traitor Hevey. Lord Cornwallis read the transmiss of Hevey’s condemnation—his heart recoiled from the detail of stupidity and barbarity. He dashed his pen across the odious record, and ordered that Hevey should be forthwith liberated. On his return to Dublin, Hevey met Major Sandys, and demanded his mare: ‘Ungrateful villain,’ says the Major, ‘is this the gratitude you show to his majesty and to me, for our clemency to you—you shan’t get possession of the beast.’ Hevey brought an action for the mare; the major, not choosing to come into court and suggest the probable success of a thousand actions, restored the property.

Three years had elapsed since the deliverance of Hevey—the public atmosphere has cleared—the private destiny of Hevey seemed to have brightened, but the malice of his enemies had not been appeased. On the 8th of September, 1801, Mr. Hevey was sitting in a public coffee house—Major Sirr was there—Mr. Hevey was informed that Major Sirr had at that moment said, that he (Hevey) ought to have been hanged. Mr. Hevey was fired at the charge; he fixed his eye on Sirr, and asked if he had dared to say so? Sirr declared that he had, and had said truly. Hevey answered, that he was a slanderous scoundrel. At the instant Sirr rushed upon him, and assisted by three or four of his satellites, who had attended him in disguise,

secured him, and sent him to the castle guard, desiring that a receipt might be given for the villain.—He was sent thither. The officer of the guard chanced to be an Englishman, but lately arrived in Ireland—he said to the bailiffs, ‘If this was in England, I should think this gentleman entitled to bail, but I don’t know the laws of this country—however, I think you had better loosen those irons on his wrists, or they may kill him.’

Major Sirr, the defendant, soon arrived, went into his office, and returned with an order which he had written, and by virtue of which Mr. Hevey was conveyed to his old friend and gaoler, Major Sandys. Here he was flung into a room of about thirteen feet by twelve—it was called the hospital of the provost—it was occupied by six beds, in which were to lie fourteen or fifteen miserable wretches, some of them sinking under contagious disorders. Here he passed the first night without bed or food. The next morning his humane keeper, the major, appeared. Mr. Hevey demanded why he was so imprisoned, complained of hunger and asked for the gaol allowance. Major Sandys replied with a torrent of abuse, which he concluded by saying,—your crime is your insolence to Major Sirr; however, he disdains to trample on you,—you may appease him by proper and contrite submission; but unless you do, you shall rot where you are. I tell you this, that if government will not protect us, by G—d, we will not them. You will probably (for I know your insolent and ungrateful hardness) attempt to get out by an habeas corpus, but in that you will find yourself mistaken as much as a rascal deserves.’ Hevey was insolent enough to issue an habeas corpus, and a return was made on it, ‘That Hevey was in custody under a warrant from General Graig, on a charge of high treason.’ That the return was a gross falsehood, fabricated by Sirr, I am instructed to assert. The judge, before whom this return was brought, felt that he had no authority to liberate the unhappy prisoner; and thus, by a most inhuman and malicious lie, my client was again remanded to the horrid mansion of pestilence and famine. Upon this, Mr. Hevey, finding that nothing else remained, signed a submission dictated by Sandys, was enlarged from confinement, and brought the present action.

The jury awarded Mr. Hevey 150*l.* damages.

The unfortunate Emmet betrayed no tokens of fear or perturbation, but evinced the same calm and dignified aspect which ever distinguished this extraordinary young man.

A few days after, he wrote Mr. Curran the following letter.

From Mr. Robert Emmet to John Philpot Curran, Esq.

“I did not expect you to be my counsel. I nominated you, because not to have done so might have appeared remarkable. Had Mr. — been in town, I did not even wish to have seen you, but as he was not, I wrote to you to come to me at once. I know that I have done you a very severe injury, much greater than I can atone for with my life; that atonement I did offer to make before the privy council, by pleading guilty, if these documents were suppressed. I offered, if I were permitted to consult some persons, and if they would consent to an accommodation for saving the lives of others, that I would only require for my part of it the suppression of those documents, and that I would abide the event of my own trial. This also was rejected, and nothing but individual information, (with the exception of names) would be taken. My intention was, not to leave the suppression of those documents to possibility, but to render it unnecessary for any one to plead for me, by pleading guilty to the charge myself.

“The circumstances that I am now going to mention, I do not state in my own justification. When I first addressed your daughter, I expected that in another week my own fate would be decided. I knew that in case of success, many others might look on me differently from what they did at that moment; but I speak with sincerity, when I say that I never was anxious for situation or distinction myself, and I do not wish to be united to one who was. I spoke to your daughter, neither expecting, nor, in fact, under such circumstances, wishing that there should be a return of attachment; but wishing to judge of her dispositions, to know how far they might not be unfavourable or disengaged, and to know what foundation I might afterwards have to count on. I received no encouragement whatever. She told me she had no attachment for any person, nor did she seem likely to have any that could make her wish to quit you. I staid away till the time had elapsed when I found that the event to which I allude was to be postponed indefinitely. I returned by a kind of infatuation, thinking that to myself only was I giving pleasure or pain. I perceived no progress of attachment on her part, nor anything in her conduct to distinguish me from a common acquaintance. Afterwards I had reason to suppose that discoveries were made, and that I should be obliged to quit the kingdom immediately: and I came to make a renunciation of any approach to friendship that might have been formed. On that very day she herself spoke to me to discontinue my visits; I told her it was my intention, and I mentioned the reason. I then, for the first time, found I was unfortunate, by the manner in which she was affected, that there was a return of affection, and that it was too late to retreat. My own apprehensions, also, I afterwards found, were without cause, and I remained. There has been much culpability on my part in all this, but there has also been a great deal of that misfortune which seems uniformly to accompany me. That I have written to your daughter since an unfortunate event has taken place, was an additional breach of propriety, for which I have suffered well; but I will candidly confess, that I not only do not feel it to have been of the same extent, but that I consider it to have been unavoidable, after what had passed; for though I will not attempt to justify, in the smallest degree, my former conduct, yet when an attachment was once formed between us—and a sincerer one never did exist—I feel that, peculiarly circumstanced as I then was, to have left her uncertain of my situation would neither have weaned her affections, nor lessened her anxiety; and looking upon her as one whom, if I had lived, I hoped to have had my partner for life, I did hold the removing her anxiety above every other consideration. I would rather have had the affections of your daughter in the back settlements of America, than the first situation this country could afford without them. I know not whether this would be any extenuation of my offence—I know not whether it will be any extenuation of it to know, that if I had that situation in my power at this moment, I would relinquish it to devote my life to her happiness—I know not whether success would have blotted out the recollection of what I have done—but I know that a man, with the coldness of death in him, need not be made to feel any other

coldness, and that he may be spared any addition to the misery he feels not for himself, but for those to whom he has left nothing but sorrow.”

The original, from which the above has been copied, is not signed or dated. It was written in the interval between Mr. Emmet’s conviction and execution.

Upon the arrest of Mr. Emmet, some papers were found upon his person, which shewed that subsequent to the insurrection, he had corresponded with one of Mr. Curran’s family: a warrant accordingly followed, as a matter of course, to examine Mr. Curran’s house, where some of Mr. Emmet’s letters were found, which, together with the documents taken upon his person, placed beyond a doubt, his connection with the late conspiracy, and were afterwards used as evidence upon his trial.

At the instance of the attorney-general, Mr. O’Grady, Mr. Curran accompanied him to the privy council. Upon his first entrance, there was some indication of the hostile spirit which he had originally apprehended. A noble lord, who at that time held the highest judicial situation in Ireland, undertook to examine him upon the transaction which occasioned his attendance. To do this was undoubtedly his duty. He fixed his eye upon Mr. Curran, and was proceeding to cross-examine his countenance, when (as it is well remembered by the spectators of the scene) the swell of indignation, and the glance of stern dignity and contempt which he encountered there, gave his own nerves the shock which he had meditated for another’s, and compelled him to shrink back in his chair, silent and disconcerted at the failure of his rash experiment. With this single exception, Mr. Curran was treated with the utmost delicacy.

A special commission was opened to try Emmet and nineteen other prisoners in Dublin, on the thirty-first of August, 1803, under Lord Norbury, Mr. Finucane, and Barons George and Daly. Mr. Standish O’Grady was the attorney general.

Of these nineteen, one was acquitted, and another reprieved; the rest were convicted and executed on the evidence of various witnesses.

Amongst the unfortunate men convicted were some of the principle associates of Emmet in the insurrection. Mr. Russel was the son of an officer of reputation in his majesty’s service, and who, having retired, enjoyed an honourable retreat in the situation of master of the royal hospital

for veterans at Kilmainham, near Dublin. He was placed early in the army, and served at Bunker's Hill, and the subsequent campaigns in North America. After the peace, he either retired on half pay, or his corps was reduced. He was affectionate and tender-hearted, and possessed every feeling and sentiment of the gentleman. After the arrest of Emmet, Russel introduced himself clandestinely into Dublin, with a view to rescue his friend, if possible, under favour of some commotion. About two days after his arrival, it became known that some person was mysteriously secreted in the immediate vicinity of the castle. Information to this effect having been conveyed to Major Sirr, that officer proceeded to the examination of a house in Parliament-street, where he was found, and to whom Mr. Russel, though well armed, surrendered without resistance. It was supposed that he was, in this act, influenced by a religious scruple. He was immediately transmitted to Down Patrick, in the north of Ireland, where he was shortly after brought to trial, and upon the clearest evidence of his treason, convicted.—After his trial, he manifested all that wildness of religious enthusiasm, which had for some time formed the prominent feature of his character. On conviction, he addressed the court at great length, and with remarkable firmness. He declared his adherence to the political opinions for which he was about to suffer, and touched, in a tender point, the gentlemen of the county of Down, by whom he was surrounded. These gentlemen, although latterly become more anxious to secure their property than to preserve the circle of their liberties, had been foremost in the outcry for parliamentary reform and political independence. Russel reminded them of this circumstance, and declared that he was doomed to suffer for endeavoring to put into execution the lessons imbibed amongst them.

A man of a different stamp was Dwyer. This man, at the head of a gang of deserters and banditti, had remained in arms from the period of the rebellion of 1798, obstinately rejecting repeatedly proffered mercy, and who dexterously eluding all pursuit, had sustained himself under the protection of the almost inaccessible fastnesses of the Wicklow Mountains. His party did not ostensibly exceed twenty, but he was supposed to possess unbounded influence over the peasants of the district, so that a large body, on any notable undertaking, was within his means of command. Dwyer and his band of outlaws afterwards submitted, on the stipulation that their lives should be spared.

On Mr. Emmet's trial, the several facts and circumstances already narrated, were fully proved. He called no witnesses, and was found guilty. Previous to the judge's charge to the jury, Lord Conyngham Plunket, who was then king's counsel, and conducted the prosecution against Mr. Emmet, made a speech of considerable length, and in the severest tone of legal and political asperity, detailed the consequences that would affect all social order, were such opinions as Emmet entertained allowed to have any countenance from the mildness of the laws, or the mistaken lenity, which is often exercised by the authority vested in the sacred person of majesty.

When Mr. Emmet was put to the bar, and called upon by Lord Norbury to offer what he had to say why sentence of death and execution should not be awarded against him according to law, he rose with great firmness and composure, and delivered a speech of remarkable force and ability. His appeal to the memory of his parent was most affecting:—"If the spirits of the illustrious dead participate in the cares of those who are dear to them in this transitory life, oh! ever dear and venerated shade of my departed father, look down with scrutiny upon the conduct of your suffering son, and see if I have even for a moment, deviated from those principles of morality and patriotism, which it was your care to instil into my youthful mind, and for which I am now about to offer up my life."

In remarking on the language of the counsel for the crown, Mr. Emmet said, that "In their early intimacy, he had actually inculcated into his mind those principles for which he was now about to suffer."

The following is the copy of a letter from Mr. Emmet to Mr. Richard Curran:—

"My dearest Richard:—I find I have but a few hours to live, but if it was the last moment, and that the power of utterance was leaving me, I would thank you from the bottom of my heart for your generous expressions of affection and forgiveness to me. If there was any one in the world in whose breast my death may be supposed not to stifle every spark of resentment, it might be you. I have deeply injured you—I have injured the happiness of a sister that you love, and who was formed to give happiness to every one about her, instead of having her own mind a prey to affliction. Oh! Richard, I have no excuse to offer, but that I meant the reverse: I intended as much happiness for Sarah as the most ardent love could have given her. I never did tell you how much I idolized her: it was not with a wild or unfounded passion, but it was an attachment increasing every hour, from an admiration of the purity of her mind, and respect for her talents. I did dwell in secret upon the prospect of our union. I did hope that success, while it afforded the opportunity of our union, might be the means of confirming an attachment, which misfortune had called forth. I did not look to honours for myself; praise I would have asked from the lips of no man; but I would have wished to read in the glow of Sarah's countenance, that her husband was respected.

“My love, Sarah! it was not thus that I thought to have requited your affections. I did hope to be a prop round which your affections might have clung, and which would never have been shaken, but a rude blast has snapped it, and they have fallen over a grave.

“This is no time for affliction. I have had public motives to sustain my mind, and I have not suffered it to sink; but there have been moments in my imprisonment when my mind was so sunk by grief on her account, that death would have been a refuge.

“God bless you, my dearest Richard. I am obliged to leave off immediately.

ROBERT EMMET.”

This letter was written at twelve o'clock on the day of Mr. Emmet's execution, and the firmness and regularity of the original hand-writing contains a striking and affecting proof of the little influence which the approaching event exerted over his frame. The same enthusiasm which allured him to his destiny, enabled him to support its utmost rigour. He met his fate with unostentatious fortitude; and although few will be found bold enough to justify his projects since they were unsuccessful, yet his youth, his talents, the great respectability of his connections, and the evident delusion of which he was the victim, have excited more general sympathy for his unfortunate end, and more forbearance towards his memory, than is usually extended to the errors or sufferings of political offenders.

What brought forth this wonderful effort of a young gentleman, unaided and unsupported by any rational system of organization, uncountenanced but by the humblest men in society, relying on his own great energies, and the thousand circumstances which chance might throw up on the surface of the political ocean? What animated the mind and spirit of Emmet, night after night, and day after day? What? His enemies will say it was ambition, a hope of personal aggrandizement, and a speculation of personal exaltation, a sanguinary purpose to raise himself on the ruins of all that was respected and cherished in society. To such enemies we will reply that, if ever an enthusiast was animated with a pure and unadulterated sentiment of the most disinterested anxiety for the freedom of his native country—if ever there was a human being who was ready to lay down his life for the comfort and happiness of his fellow-creatures—if ever there was a heart that sincerely sympathised with the sufferings of mankind, or that would cheerfully devote itself at the altar, if such a sacrifice could procure the liberty of Ireland—Robert Emmet was that man.

With an intellect of the highest order, eloquence powerful, commanding, and inexhaustible; an integrity which no force could bend; a spirit which no danger or suffering could intimidate; born of parents who were the pride and boast of their country; the brother of those men who in the birth-day of Ireland's freedom, illuminated the political firmament, and gave their country a hope that her freedom would be immortal; the witness of her fall, and the spectator of her degradation, he gave himself up to the dreams of his own imagination, and thought he saw the liberties of his country achieved before he had formed his plan to secure them. With all the customary characteristics of an enthusiast, he seemed to disdain those humble calculations by which all human objects are to be obtained. But Emmet achieved what no other man but himself would have dared to attempt. With his single mind, and single arm, he organized thousands of his countrymen, and besieged the government of the country in their strongest position.

Mr. Emmet was executed on the day following that of his sentence, in Thomas-street, at the head of Bridgefoot Street, opposite Catherine's church.

Robert Emmet, the lofty-minded patriot—the amiable enthusiast—the warm-hearted friend, and ardent lover is no more! The hand of the executioner extinguished the fire and energy of that soul, which burned for his country's good; and that tongue, of the purest and sublimest eloquence, is now for ever mute.

He died as he lived, with heroic fearlessness, and decent fortitude. The amiable, though enthusiastic Emmet, however, we hope has not died in vain; our rulers must learn from his history that a people without confidence is a moral Hydra, never to be deprived of the means of doing mischief. The head of one rebellion is no sooner lopped off than another is generated. The Hercules, who is to annihilate the monster, can only be found in those acts of wisdom and justice, which are to reconcile the people to their rulers, by making them freemen.

The fate of Robert Emmet demanded something more than tears, and unprofitable as these may have been, we have continued to offer them still to his memory. But let our private sorrows pass; history one day will do him justice; we have thrown our mite in the scale in which his reputation yet

trembles; and, inadequate as that may be, it is sincere and impartial. All ye who knew him in “his hour of pride,” go and do likewise.

The following is extracted from a letter addressed to Mr. Rufus King from T. A. Emmet, brother to Robert Emmet, on the subject of Mr. King’s interference with the British government, as ambassador from the United States, to prevent the Irish state prisoners of 1798 from emigrating to America:—

“Sir,—In the commencement of our negociation, Lord Castlereagh declared, as a reason for acceding to government’s possessing a negative on our choice, that it had no worse place in view for our emigration than the United States of America. We had made our election to go there, and called upon him to have our agreement carried into execution. In that difficulty, you, sir, afforded very effectual assistance to the faithlessness of the British cabinet. On the 16th of September, Mr. Marsden, then Under Secretary, came to inform us that Mr. King had remonstrated against our being permitted to emigrate to America. This astonished us all, and Dr. M Neven very plainly said that he considered this as a mere trick between Mr. King and the British Government. This Mr. Marsden denied, and on being pressed to know what reason Mr. King could have for preventing us, who were avowed republicans, from emigrating to America, he significantly answered, ‘Perhaps Mr. King does not desire to have republicans in America.’ Your interference was then, sir, made the pretext of detaining us for four years in custody, by which very extensive and useful plans of settlement within these states were broken up. The misfortunes which you brought upon the objects of your persecution were incalculable. Almost all of us wasted four of the best years of our lives in prison. As to me, I should have brought along with me my father and his family, including a brother, whose name perhaps even you will not read without emotions of sympathy and respect. Others nearly connected with me would have come partners in my emigration. But all of them have been torn from me. I have been prevented from saving a brother, from receiving the dying blessings of a father, mother, and sister, and from soothing their last agonies by my cares; and this, sir, by your unwarrantable, unprecedented, and unfeeling interference. Your friends, when they accuse me of want of moderation towards you, are wonderfully mistaken. They do not reflect, or know, that I have never spoken of you without suppressing, as I do now, personal feelings that rise up within me, and swell my heart with indignation and resentment. The step you took was unauthorised by your own government. Whether our conduct in Ireland was right or wrong, you have no justification for yours. The constitution and laws of this country gave you no power to require of the British government that it should violate its faith, and withdraw from us its consent to the place we had fixed upon for our voluntary emigration; neither the president nor you were warranted to prevent our touching these shores.—These remarks I address, with all becoming respect, to ‘the first man in the country.’ Yet in fact, sir, I do not clearly see in what consists your superiority over myself. It is true you have been a resident minister at the court of St. James’; and, if what I have read in the public prints be true, and if you be apprised of my near relationship and family connexion with the late Sir John Temple, you must acknowledge that your interference as resident minister at the court of St. James’s, against my being permitted to emigrate to America, is a very curious instance of the caprice of fortune—but let that pass. To what extent I ought to yield to you for talents and information, is not for me to decide.—In no respect, however, do I feel your excessive superiority.—My private conduct and character are, I hope, as fair as yours—and even in those matters which I consider as trivial, but upon which aristocratic pride is accustomed to stamp a value, I should not be inclined to shrink from competition. My birth certainly will not humble me by the comparison; my paternal fortune was, probably, much greater than yours;

the consideration in which the name I bear in my native country was held, was as great as yours is ever likely to be before I had an opportunity of contributing to its celebrity.

“As to the amount of what private fortune I have been able to save from the wreck of calamity it is unknown to you or to your friends; but two things I will tell you:—I never was indebted, either in the country from which I came, nor in any other in which I have lived, to any man, further than the necessary credit for the current expenses of a family; and am not so circumstanced that I should tremble “for my subsistence” at the threatened displeasure of your friends. So much for the past and present—now for the future. Circumstances which cannot be controlled, have decided that my name must be embodied into history. From the manner in which even my political adversaries, and some of my contemporary historians, unequivocally hostile to my principles, already speak of me, I have the consolation of reflecting, that when the falsehoods of the day are withered and rotten, I shall be respected and esteemed.—You, sir, will probably be forgotten, when I shall be remembered with honour, or if, peradventure, your name should descend to posterity, perhaps you will be known only as the recorded instrument of part of my persecutions, sufferings, and misfortunes.

THOMAS ADDIS EMMET.”

New-York, April 9, 1807.

MISS CURRAN.

She is far from the land where her young hero sleeps,
And lovers are round her sighing;
But coldly she turns from their gaze and weeps,
For her heart in his grave is lying.

She sings the wild song of her dear native plains,
Every note which he loved awaking;
Ah! little they think who delight in her strains,
How the heart of the minstrel is breaking.

He had liv'd for his love, for his country he died,
They were all that to life had entwined him;
Nor soon shall the tears of his country be dried,
Nor long will his love stay behind him.

Oh! make her a grave where the sunbeams rest,
When they make her a glorious morrow;
They'll shine o'er her sleep, like a smile from the west,
From her own loved island of sorrow.

The evening before his death, Miss Curran was admitted into his dungeon to bid him her eternal farewell. He was leaning in a melancholy mood against the window of the prison, and the heavy clanking of his chains smote dismally on her heart. The interview was bitterly affecting, and melted even the callous soul of the jailor. As for Emmet himself, he wept, and spoke little; but as he pressed his beloved in silence to his heart, his countenance betrayed his emotions. In a low voice, half choked by anguish, he besought her not to forget him; he reminded her of their former happiness, of the long past days of their childhood, and concluded by requesting her sometimes to visit the scenes where their infancy was spent, and though the world might repeat his name with scorn, to cling to his memory with affection. In parting, she turned round, as if to gaze once more on her widowed love. He caught her eye as she retired—it was but for a moment—and as the door closed on him, it informed her too surely that they had met for the last time on earth, but that they should meet in a better world, where man could not separate them.

She loved him with the disinterested fervour of a woman's first and early love. When every worldly maxim arrayed itself against him—when blasted in fortune, and disgrace and danger darkened around his name, she loved

him the more ardently for his very sufferings. If, then, his fate could awaken the sympathy even of his foes, what must have been the agony of her whose whole soul was occupied by his image? Let those tell who have had the portal of the tomb suddenly closed between them and the being they most loved on earth—who have sat at its threshold, as one shut out in a cold and lonely world from whence all that was most lovely and loving had departed.

To render her widowed situation more desolate, she had incurred her father's displeasure by her unfortunate attachment, and was an exile from her paternal roof. But could the sympathy and offices of friends reached a spirit so shocked and driven in by horror, she would have experienced no want of consolation, for the Irish are proverbially a people of quick and generous sensibilities.

The most delicate and cherishing attentions were paid her by families of wealth and distinction. She was led into society, and they tried by all kinds of occupation and amusement to dissipate her grief, and wean her from the tragical story of her love. But it was all in vain.

There are some strokes of calamity that scathe and scorch the soul—that penetrate to the vital seat of happiness—and blast it, never again to put forth bud or blossom. She never objected to frequent the haunts of pleasure, but she was as much alone there as in the depths of solitude. She walked about in a sad reverie, apparently unconscious of the world around her. She carried with her an inward woe that mocked at all the blandishments of friendship, and “heeded not the song of the charmer, charm he never so wisely.”

On the occasion of a masquerade at the Rotunda, her friends brought her to it. There can be no exhibition of far-gone wretchedness more striking and painful than to meet it in such a scene. To find it wandering like a spectre, lonely and joyless, where all around is gay—to see it dressed out in the trappings of mirth, and looking so wan and wo-begone, as if it had tried in vain to cheat the poor heart into a momentary forgetfulness of sorrow. After strolling through the splendid rooms and giddy crowd with an air of utter abstraction, she sat herself down on the steps of an orchestra, and looking about for some time with a vacant air, that shewed insensibility to the garish scene, she began, with the capriciousness of a sickly heart, to warble a little plaintive air. She had an exquisite voice but on this occasion it was so

simple, so touching, it breathed forth such a soul of wretchedness, that she drew a crowd, mute and silent around her, and melted every one into tears.

The story of one so true and tender could not but excite great interest in a country remark for enthusiasm. It completely won the heart of a brave officer who paid his addresses to her, and thought that one so true to the dead could not but prove affectionate to the living. She declined his attentions, for her thoughts were irrevocably engrossed by the memory of her former lover.—He, however, persisted in his suit. He solicited not her tenderness, but her esteem. He was assisted by her conviction of his worth, and her sense of her own destitute and dependant situation, for she was existing on the kindness of friends. In a word, he at length succeeded in gaining her hand, though with the solemn assurance that her heart was unalterably another's.

He took her with him to Sicily, hoping that a change of scene might wear out the remembrance of early woes. She was an amiable and exemplary wife, and made an effort to be a happy one; but nothing could cure the silent and devouring melancholy that had entered into her very soul. She wasted away in a slow but hopeless decline, and at length sunk into the grave, the victim of a broken heart.

Her sorrows are numbered—no longer she weeps,
Every pang she endured is requited;
With endless delight, and in silence she sleeps,
For in death with her love she's united.

Like Sidney he died, but his mem'ry shall live
In the bosoms of those who deplored him;
And Pity her purest of dew-drops shall give
To the sorrows of those who adored him.

For he loved—was beloved—but alas! in his bloom,
The ordeal of fate here sore tried him;
And his spirit took flight from this world of gloom,
To that glory which here was denied him.

From regions of bliss—the high Heavens above,
Where sorrows can never invade him;
He saw her distress, and he beckoned his love
To ascend, and with joy she obeyed him.

And she who is joined to the spirit she mourned,
Now in bliss, 'tis in vain to deplore her;
For her memory shall live in their bosoms inurned,
Who vowed even in death to adore her.

Whether hero, or lover, or else matters not,
 “Other times—other men shall divine him;”
Let him rest with his love, by the world forgot,
 We have hearts large enough to enshrine him.

MY EMMET'S NO MORE.

Despair in her wild eye, a daughter of Erin,
 Appeared on the cliff of a bleak rocky shore,
Loose in the winds flowed her dark streaming ringlets
 And heedless she gazed on the dread surge's roar.
Loud rang her harp in wild tones of despairing,
 The time passed away with the present compairing,
And in soul-thrilling strains deeper sorrow declaring,
 She sang Erin's woes, and her Emmet's no more!

“Oh, Erin! my country, your glory's departed,
 For tyrants and traitors have stabbed thy heart's core,
Thy daughters have laved in the streams of affliction,
 Thy patriots have fled, or are stretched in their gore.
Ruthless ruffians now prowl through thy hamlets forsaken
 From pale hungry orphans their last morsels have taken;
The screams of thy females no pity awaken;
 Alas! my poor country, your Emmet's no more!

“Brave was his spirit, yet mild as the Brahmin,
 His heart bled in anguish at the wrongs of the poor;
To relieve their hard sufferings he braved every danger,
 The vengeance of tyrants undauntedly bore.
E'en before him the proud titled villains in power,
 Were seen, though in ermine, in terror to cower,
But, alas! he is gone—he has fallen a young flower,
 They have murdered my Emmet—my Emmet's no more!”

THE TRIAL
OF
ROBERT EMMET,
UPON AN
INDICTMENT FOR HIGH TREASON,

*Held, under a Special Commission, at the Sessions House, Green Street, on Monday, 19th of
September, 1803.*

JUDGES PRESENT.—LORD NORBURY, MR. BARON GEORGE, AND
MR. BARON DALY.
MR. STANDISH O'GRADY, ATTORNEY GENERAL.

To the indictment, charging him with compassing the disposition and death of the king, and conspiring to levy war against the king within the realm, Mr. Emmet pleaded not guilty. He was then given in charge.

The indictment was then opened, in substance, to the following effect, by
THE ATTORNEY-GENERAL,

My Lord, and Gentlemen of the Jury:

It is my duty to state, as concisely as I can, the nature of the charge which has been preferred against the prisoner at the bar, and also the nature of the evidence which will be produced to substantiate the charge. It will require on your part the most deliberate consideration; because it is not only the highest crime of which at all times the subject can be guilty, but it receives, if possible, additional aggravation when we consider the state of Europe, and the lamentable consequences which revolution has already brought upon it.

Perhaps at former periods some allowance might be made for the heated imagination of enthusiasts; perhaps an extravagant love of liberty, might for a moment supersede a rational understanding, and might be induced, for

want of sufficient experience or capacity, to look for that liberty in revolution. But it is not the road to liberty. It throws the mass of the people into agitation, only to bring the worst and the most profligate to the surface. It originates in anarchy, proceeds in bloodshed, and ends in cruel and unrelenting despotism.

Therefore, Gentlemen, the crime of which the prisoner stands charged, demands the most serious and deep investigation, because it is in its nature a crime of the blackest die, and which, under all existing circumstances, does not admit of a momentary explanation.

Gentlemen, the prisoner stands indicted under a very ancient statute—the 25th of Edward III.—and the indictment is grounded on three clauses. The first relates to compassing and imagining the death of the king—the second in adhering to his enemies—and the third in compassing to levy war against him. The two latter, namely, that of adhering to the king's enemies, and that of compassing to levy war, are so intelligible in themselves that they do not require any observation upon them. But the first admits of some technical considerations, and may require on my part a short explanation.

In the language of the law, compassing the death of the king, does not mean or imply necessarily, any immediate attack upon his person. But any conspiracy, which has for its object an alteration of the laws, constitution, and government of the country by force, uniformly leads to anarchy and general destruction, and finally tends to endanger the life of the king. And, therefore, where that design is substantiated, and manifested by overt acts, whenever the party entertaining the design, uses any means to carry his traitorous intentions into execution, the crime of compassing and imagining the death of the king is complete.

Accordingly, gentlemen, this indictment particularly states overt acts, by which the prisoner disclosed the traitorous imagination of his heart—and, if it shall be necessary, those particular overt acts, and the applicability of the evidence which will be produced to support them, will be stated at large to you by the court, and therefore it will not be necessary for me now to trespass upon the public time, by a minute examination of them.

Gentlemen, having heard the charge against the prisoner, you will naturally feel that your duty will require an investigation into two distinct points: first, whether there has, or has not existed a traitorous conspiracy and rebellion for the purpose of altering the law, the constitution, and the

government of the country by force?—And, secondly, whether the prisoner has in any, and in what degree, participated in that conspiracy and rebellion?

Gentlemen, I do not wish to undertake to speak in the prophetic: but when I consider the vigilance and firmness of his majesty's government, the spirit and discipline of his majesty's troops, and that armed valour and loyalty which, from one end of the country to the other, has raised itself for the purpose of crushing domestic treason, and, if necessary, of meeting and repelling a foreign foe, I do not think it unreasonable to indulge a sanguinary hope, that a continuance of the same conduct upon the part of government, and of the same exertions upon the part of the people, will long preserve the nation free, happy and independent.

Gentlemen, upon former occasions, persons were brought to the bar of this court, implicated in the rebellion, in various, though inferior degrees. But if I am rightly instructed, we have now brought to the bar of justice, not a person who has been seduced by others, but a gentleman to whom the rebellion may be traced as the origin, the life, and soul of it. If I mistake not, it will appear that some time before Christmas last, the prisoner, who had visited foreign countries, and who for several months before had made a continental tour, embracing France, returned to this country, full of those mischievous designs which have been so fully exposed. He came from that country, in which he might well have learned the necessary effects of revolution; and therefore, if he be guilty of treason, he embarked in it with his eyes open, and with a previous knowledge of all its inevitable consequences.—But, notwithstanding, I am instructed that he persevered in fomenting a rebellion, which I will be bold to say, is unexampled in any country, ancient or modern. A rebellion which does not complain of any existing grievances, which does not flow from any immediate oppression, and which is not pretended to have been provoked by our mild and gracious king, or by the administration employed by him, to execute his authority. No, gentlemen, it is a rebellion which avows itself to come, not to remove any evil which the people feel, but to recal the memory of grievances, which, if they ever existed, must have long since passed away.

You will recollect, gentlemen, that in the large proclamation there was a studied endeavour to persuade a large portion of the people that they had no religious feuds to apprehend from the establishment of a new government.

But the manifesto upon which I am now about animadverting has taken a somewhat different course, and has revived religious distinctions at the very moment in which it expresses a desire to extinguish them.

“Orangemen, add not to the catalogue of your follies and crimes, already have you been duped to the ruin of the country, in the legislative union with its tyrant; attempt not an opposition; return from the paths of delusion; return to the arms of your countrymen, who will receive and hail your repentance. Countrymen of all descriptions, let us act with union and concert; all sects, Catholic, Protestant, Presbyterian, are equal and indiscriminately embraced in the benevolence of our object?” I will not apply to this passage all the observations that press upon my mind, because I am sincerely desirous that one feeling and one spirit should animate us all. I cannot but lament that there should be so many sectaries in religion, but trust in God there will be found amongst us but one political faith. But this manifesto is equally unfortunate in every instance in which it prescribes moderation. Attend to the advice by which it instigates the citizens of Dublin: “In a city each street becomes a defile and each house a battery; impede the march of your oppressors, charge them with the arms of the brave, the pike, and from the windows and roofs hurl stones, bricks, bottles, and all other convenient implements, on the heads of the satellites of your tyrant, the mercenary, the sanguinary soldiery of England.”

Having thus roused them, it throws in a few words of composure, “repress, prevent, and discourage excesses, pillage, and intoxication;” and to ensure that calmness of mind which is so necessary to qualify them for the adoption of this salutary advice, it desires that they will “remember against whom they fight, their oppressors for 600 years: remember their massacres, their tortures; remember your murdered friends, your burned houses, your violated females.” Thus affecting to recommend moderation, every expedient is resorted to, which could tend to inflame sanguinary men to the commission of sanguinary deeds.

Gentlemen, you must by this time be somewhat anxious to know the progress of the general, who escaped the memorable action which was to be fought, and the first place in which I am enabled to introduce him to you, is at the house of one Doyle, who resides near the Wicklow mountains. There the general and his companions took refuge, at the commencement of the following week: they arrived there at a late hour; the general was still

dressed in his full uniform, with suitable lace and epaulets, and a military cocked hat, with a conspicuous feather. Two other persons were also decorated in green and gold. From thence they proceeded to the house of Mrs. Bagnall, and returned to the city of Dublin. What became of the other persons is foreign to the present inquiry, but we trace the prisoner from those mountains to the same house in Harold's Cross, in which he formerly resided, and assuming the old name of Hewit; he arrived there the Saturday after the rebellion.

Having remained a month in this concealment, information was had, and Major Sirr, to whose activity and intrepidity the loyal citizens of Dublin are under much obligation, did confer an additional, and a greater one, by the zealous discharge of his duty on this occasion. He came by surprise on the house, having sent a countryman to give a single rap, and the door being, opened, the Major rushed in, and caught Mrs. Palmer and the prisoner sitting down to dinner; the former withdrew, and the Major immediately asked the prisoner his name, and, as if he found a gratification in assuming a variety of titles, he said his name was Cunningham, that he had that day arrived in the house, having been upon a visit with some friends in the neighbourhood; the Major then left him in charge of another person, and went to inquire of Mrs. Palmer concerning him; she said he was a very proper young man of the name of Hewit, and that he had been in her house about a month: the Major at this moment heard a noise, and he found that the prisoner was endeavouring to make his escape, and having been struck with a pistol by the person who had the custody of him, he was by that means detained; immediately further assistance was called in from a neighbouring guard-house, and an additional sentry was put upon him. The Major then again proceeded further to interrogate Mrs. Palmer, when the prisoner made another effort, got into the garden through the parlour window, but was at length overtaken by the Major, who at the peril of his own life, fortunately secured him. When the Major apologized for the roughness with which he was obliged to treat him, the prisoner replied, "all is fair in war."

Gentlemen, you have the life of a fellow subject in your hands, and by the benignity of our laws, he is presumed to be an innocent man until your verdict shall find him guilty.

If upon the evidence you shall be so satisfied that this man is guilty, you must discharge your duty to your king, your country, and to your God. If, on the other hand, nothing shall appear sufficient to affect him, we shall acknowledge that we have grievously offended him, and will heartily participate in the common joy that must result from the acquittal of an honest man.

EXAMINATION OF WITNESSES.

Joseph Rawlins, Esq. being sworn, desposed to a knowledge of the prisoner, and recollected having been in his company some time in the month of December last, when he understood from him that he had been to see his brother at Brussels. On his cross-examination, the witness said, that in conversations with him on the subject of continental politics, the prisoner avowed that the inhabitants of the Austrian Netherlands execrated Buonaparte's government; and from the whole of the prisoner's conversation, the witness had reason to believe, that he highly condemned Buonaparte's conduct and government.

George Tyrrel, an attorney, proved the execution, in the month of June last, of the lease of a house in Butterfield-lane, Rathfarnham, from Michael Frayne to the prisoner, who assumed on the occasion, the name of Ellis. Mr. Tyrrel was one of the subscribing witnesses to the lease, and a person named Dowdall was the other.

Michael Frayne, who leased the above-mentioned house to the prisoner, proved also to that fact, and that he gave him possession of it on the 23d of April preceding—that the prisoner and Dowdall lived there in the most sequestered manner, and apparently anxious of concealment.

John Fleming, a native of the county Kildare, sworn:—deposed, that on the 23d of July, and for the year previous thereto, he had been hostler at White Bull Inn, Thomas Street, kept by a person named Dillon. The house was convenient to Marshal-lane, where the rebel depot was, and to which the witness had free and constant access, having been in the confidence of the conspirators, and employed to bring them ammunition and other things. He saw the persons there making pike-handles, and heading them with the iron part; he also saw the blunderbusses, firelocks, and pistols in the depot, and saw ball-cartridges making there.—Here the witness identified the prisoner at the bar, whom he saw in the depot for the first time, on the Tuesday morning after the explosion in Patrick-street—(that explosion took place on Saturday, the 16th of July.) The witness had opened the gate of the Inn yard, which opened into Marshal-lane, to let out Quigley, when he saw the prisoner, accompanied by a person of the name of Palmer; the latter got

some sacks from the witness to convey ammunition to the stores, and the prisoner went into the depot, where he continued almost constantly until the evening of the 23d July, directing the preparations for the insurrection, and having the chief authority. He heard the prisoner read a little sketch, as the witness called it, purporting that every officer, non-commissioned officer and private, should have equally every thing they got, and have the same laws as in France. Being asked what it was they were to share, the prisoner replied, "what they got when they took Ireland or Dublin." He saw green uniform jackets making in the depot by different tailors, one of whom was named Colgan. He saw one uniform in particular, a green coat, laced on the sleeves and skirts, &c. and gold epaulets, like a general's dress. He saw the prisoner take it out of a desk one day and shew it to all present (here the witness identified the desk, which was in court,) he also saw the prisoner, at different times, take out papers, and put papers back into the desk; there was none other in the store. Quigley used, also, sometimes to go to the desk. On the evening of the 23d of July, witness saw the prisoner dressed in the uniform above described with white waistcoat and pantaloons, new boots and cocked hat, and white feather. He had also a sash on him, and was armed with a sword and case of pistols. The prisoner called for a big coat, but he did not get it, to disguise his uniform, as he said, until he went to the party that were to attack the castle. Quigley and a person named Stafford had uniforms like that of Emmet, but had only one epaulet. Quigley had a white feather, and Stafford a green one. Stafford was a baker in Thomas-street. About 9 o'clock the prisoner drew his sword, and called out to "come on, my boys;" he sallied out of the depot, accompanied by Quigley and Stafford, and about fifty men, as well as he could judge, armed with pikes, blunderbusses, pistols, &c. They entered Dirty-lane, and from thence into Thomas-street. The prisoner was in the centre of the party. They began to fire in Dirty-lane, and also when they got into Thomas-street. The witness was also with the party. The prisoner went into the stores by the name of Ellis. He was considered by all of them as the general and head of the business; the witness heard him called by the title of general. In and out of the depot, it was said that they were preparing to assist the French when they should land. Quigley went into the depot by the name of Graham.

Terrence Colgan, the tailor named in the foregoing evidence, sworn. Deposed, that on the Sunday previous to the insurrection, he came to town from Lucan, where he lived, and having met with a friend, they went to

Dillon's, the White Bull Inn, in Thomas-street, and drank, until the witness, overcome with liquor, fell asleep, when he was conveyed in this state, of insensibility into the depot, in Marshal-lane, and when he awoke the next morning, he was set to work making green jackets and white pantaloons. He saw the prisoner there, by whose directions everything was done, and who, he understood, was the chief. He recollected seeing the last witness frequently in the depot while he was there. He also saw the prisoner often at the desk writing. The witness corroborated the general preparations of arms, ammunition, &c. for the insurrection.

Patrick Farrel sworn. Deposed, that as he was passing through Marshal-lane, between the hours of nine and ten o'clock on the evening of Friday, the 22d of July, he stopped before the malt stores, or depot, on hearing a noise therein, which surprised him, as he considered it a waste house. Immediately the door opened, and a man came forth, who caught him, and asked him what he was doing there? The witness was then brought into the depot, and again asked what brought him there, or had he ever been there before? He said he had not. They asked him if he knew Graham? He replied he did not. One of the persons then said the witness was a spy, and called out to "drop him immediately," by which the witness understood they meant to shoot him. They brought him up stairs, and after some consultation, they agreed to wait for some person to come in, who would decide what should be done with him. That person having arrived, he asked the witness if he knew Graham? He replied that he did not. A light was brought in at the same time, and the witness having looked about, was asked if he knew any one there? He replied he knew Quigley. He was asked where? He replied that he knew him five or six years ago in the College of Maynooth, as a bricklayer or mason. The witness understood that Quigley was the person who went by the name of Graham. Here the witness identified the prisoner as the person who came in and decided he should not be killed, but he should be taken care of, and not let out. The witness was detained there that night and the whole of the next day, Saturday, the 23rd, and was made to assist at the different kinds of work.

He assisted in taking boards off a car; the boards, he said, were made into cases, and pikes put into them. These cases the witness described as being made of the outside slabs of a long beam, taken off about an inch or more thick—four or five inches at each end of the beam was cut off, the slabs were nailed together, and these pieces put in at the ends, so that it appeared

like a rough plank or beam of timber. He saw several such cases filled with pikes sent out. The witness stated that on the evening of the 23rd, he saw three men dressed in green uniforms, richly laced; one of whom was the prisoner, who wore two gold epaulets, but the other two only one each. The prisoner had also a cocked hat, sword, and pistols. When the witness was helping out one of the beams prepared for explosion, he contrived to effect his escape.

On his cross-examination, in which the interrogatories were suggested by the prisoner, the only thing remarkable in the evidence of the witness was, that he heard a printed paper read, part of which was, that nineteen counties were ready to rise at the same time, to second the attempt in Dublin. The witness also heard them say, "that they had no idea as to French relief, but would make it good themselves." In answer to a question from the Court, the witness said that he gave information of the circumstance deposed in his evidence, the next morning, to Mr. Ormsby in Thomas-street, to whom he was Steward.

Serjeant Thomas Rice proved the Proclamation of the Provisional Government, found in the depot.

Colonel Spencer Thomas Vassal being sworn, deposed that he was field officer of the day on the 23rd of July; that having gone to the depot in Marshal-lane, he found there several small proclamations addressed to the citizens of Dublin, and which were quite wet. He identified one of them. The witness also identified the desk which the prisoner used in the depot. Having remained about a quarter of an hour in the depot, he committed to Major Greeville the care of its contents.

Questioned by the Court. The witness said that he visited the depot between three and four o'clock on Sunday morning, it having been much advanced in daylight before he was suffered to go his rounds.

Alderman Frederick Darley sworn. Proved having found in the depot a paper directed to "Robert Ellis, Butterfield." Also a paper entitled a "Treatise on the Art of War." The latter had been handed, at the time, to Capt. Evelyn.

Captain Henry Evelyn sworn. Deposed having been at the rebel depot on the morning of Sunday, the 23d of July, to see the things removed to the barracks, and that he found a paper there, which, being shewn to him, he identified. This paper was a manuscript draft of the greater part of the

Proclamation of the Provisional Government, altered and interlined in a great many places.

Robert Lindsay, a soldier, and Michael Clement Frayne, quarter-master-sergeant of the 38th regiment, proved the conveyance of the desk (then in court) to the barracks; and the latter identified a letter which he found therein. The letter was signed, "Thomas Addis Emmet," and directed to "Mrs. Emmet, Miltown, Dublin," and began with, "My dearest Robert." It bore a foreign post-mark.

Edward Wilson, Esq. recollected the explosion of gunpowder which took place in Patrick street, previous to the 23rd of July: it took place on the 16th. He went there and found an apparatus for making gunpowder—was certain that it was gunpowder exploded. Proved the existence of a rebellious insurrection, as did also Lieut. Brady. The latter added, that on examination of the pikes which he found in Thomas-street, four were stained with blood on the iron part, and on one or two of them, the blood extended half way up the handle.

John Doyle, a farmer, being sworn, deposed to the following effect:—That on the morning of the 26th of July last, about two o'clock, a party of people came to his house at Ballymace, in the parish of Tallaght, seven miles from Dublin. He had been after drinking, and was heavy asleep; they came to his bedside, and stirred and called him, but he did not awake at once; when he did, and looked up, he lay closer than before: they desired him to take some spirits, which he refused; they then moved him to the middle of the bed and two of them lay down, one on each side of him. One of them said, "You have a French General and a French Colonel beside you, what you never had before." For some hours the witness lay between asleep and awake. When he found his companions asleep, he stole out of the bed, and found in the room some blunderbusses, a gun, and some pistols. The number of blunderbusses he believed were equal to the number of persons, who on being collected at breakfast, amounted to fourteen. Here he identified the prisoner as one of those who were in bed with him.

The witness then further stated that the prisoner, on going away in the evening, put on a coat with a great deal of lace and tassels, (as he expressed it.) There was another person in a similar dress; they wore, on their departure, great coats over these. The party left his house between eight and nine o'clock in the evening, and proceeded up the hill. The next morning,

the witness found, under the table on which they breakfasted, one of the small printed proclamations, which he gave to John Robinson, the barony constable.

Rose Bagnal, residing at Ballynascorney, about a mile further up the hill from Doyle's, proved that a party of men, fifteen in number, and whom she described similar to that of the preceding witness, came to her house on the night of the Tuesday immediately after the insurrection. Three of them wore green clothes, ornamented with something yellow—she was so frightened she could not distinguish exactly. One of them was called a general. She was not enabled to identify any of them. They left her house about 9 o'clock on the following night.

John Robinson, constable of the barony of Upper Cross, corroborated the testimony of the witness Doyle, relative to the small proclamation, which he identified.

Joseph Palmer sworn. Deposed that he was clerk to Mr. Colville, and lodged at his mother's house, Harold's Cross. He recollected the apprehension of the prisoner, at his mother's house, by Major Sirr, and that he did lodge there the preceding spring, at which time, and when he was arrested, he went by the name of Hewit. The prisoner came to lodge there the second time about three weeks before this last time, and was habited in a brown coat, white waistcoat, white pantaloons, Hessian boots, and a black frock. Those who visited the prisoner enquired for him by the name of Hewit. At the time he was arrested there was a label on the door of the house, expressive of its inhabitants. It was written by the witness, but the name of the prisoner was omitted, at his request because he said he was afraid government would take him up.

The prisoner, in different conversations with the witness, explained why he feared to be taken up. He acknowledged that he had been in Thomas-street, on the night of the 23d of July, and described the dress he wore on that occasion, part of which were the waistcoat, pantaloons, and boots already mentioned, and particularly his coat, which he said was a very handsome uniform. The prisoner had also a conversation with the witness about a magazine, and expressed much regret at the loss of the powder in the depot. The proclamations were likewise mentioned by the prisoner, and he planned a mode of escape, in the event of any attempt to arrest him, by going through the parlour window into the back house, and from thence into

the fields. Here the witness was shown a paper, found upon a chair in the room in which the prisoner lodged, and asked if he knew whose handwriting it was? He replied that he did not know, but was certain that it had not been written by any of his family, and that there was no lodger in the house besides the prisoner.

The examination of this witness being closed, extracts from the proclamation, (vide the Attorney General's statement) addressed to the Citizens of Dublin, were read.

Major Henry Charles Sirr, examined. Deposed to the arrest of the prisoner as follows: "I went on the 25th of August, to the house of one Palmer. I had heard there was a stranger in the back parlour. I rode, accompanied by a man on foot: I desired the man to knock at the door—he did, and it was opened by a girl. I alighted, and ran in directly to the back parlour—I saw the prisoner sitting at dinner; the woman of the house was there, and the girl who opened the door was the daughter of the woman of the house. I desired them to withdraw. I asked the prisoner his name, he told me his name was Cunningham. I gave him in charge to the man who accompanied me, and went into the next room to ask the woman and her daughter about him; they told me his name was Hewit; I went back and asked him how long he had been there? He said he came that morning. He had attempted to escape before I returned, for he was bloody and the man said he knocked him down with a pistol. I then went to Mrs. Palmer, who said he had lodged there for a month; I then judged he was some person of importance. When I first went in, there was a paper on the chair,^[6] which I put into my pocket; I then went to the canal bridge for a guard, having desired them to be in readiness as I passed; I planted a sentry over him, and desired the non-commissioned officer to surround the house with sentries, while I searched it; I then examined Mrs. Palmer, and took down her account of the prisoner, during which time I heard a noise as if an escape was attempted: I instantly ran to the back part of the house, as the most likely part for him to get out at. I saw him going off, and ordered a sentinel not to fire, and then pursued myself; regardless of my order, the sentinel snapped, but his musket did not go off. I overtook the prisoner and he said, "I surrender." I searched him, and found some papers upon him.

"On the witness expressing concern at the necessity of the prisoner's being treated so roughly, he (the prisoner) observed, that "All was fair in

war.” The prisoner, when brought to the castle, acknowledged that his name was Emmet.”

Here the case closed on the part of the crown, and the prisoner having declined to enter into any defence, either by witnesses or his counsel, an argument arose between Mr. McNally and Mr. Plunket, as to the latter’s right to reply to evidence, when no defence had been made. Lord Norbury said, that the counsel for the prisoner could not by their silence preclude the crown from that right, and, therefore, decided in favour of Mr. Plunket.

Mr. Plunket then addressed the court to a considerable length, and spoke to evidence in effect, the same as the Attorney General.

Lord Norbury charged the Jury, minutely recapitulating the whole of the evidence, and explained the law.

The Jury, without leaving the box, pronounced the Prisoner—Guilty.

The judgment of the court having been prayed upon the prisoner, the Clerk of the Crown, in the usual form, asked him what he had to say why sentence of death and execution should not be awarded against him according to law, Mr. Emmet addressed the court as follows.

MR. EMMET'S REPLY.

MY LORDS,—I am asked, what have I to say why sentence of death should not be pronounced on me, according to law? I have nothing to say that can alter your predetermination, nor that it will become me to say, with any view to the mitigation of that sentence which you are to pronounce, and I must abide by. But I have that to say which interests me more than life, and which you have laboured (as was necessarily your office in the present circumstances of this oppressed country) to destroy—I have much to say, why my reputation should be rescued from the load of false accusation and calumny which has been heaped upon it. I do not imagine that, seated where you are, your minds can be so free from impurity, as to receive the least impression from what I am going to utter. I have no hopes that I can anchor my character in the breasts of a Court constituted and trammelled as this is. I only wish, and it is the utmost I expect, that your Lordships may suffer it to float down your memories untainted by the foul breath of prejudice, until it finds some more hospitable harbour to shelter it from the storm by which it is at present buffeted.

Were I only to suffer death, after being adjudged guilty by your tribunal I should bow in silence, and meet the fate that awaits me without a murmur; but the sentence of the law which delivers my body to the executioner, will, through the ministry of that law, labour in its own vindication, to consign my character to obloquy; for there must be guilt somewhere: whether in the sentence of the Court or in the catastrophe, posterity must determine. A man in my situation, my Lords, has not only to encounter the difficulties of fortune, and the force of power over minds which it has corrupted or subjugated, but the difficulties of established prejudice; the man dies, but his memory lives; that mine may not perish—that it may live in the respect of my countrymen—I seize upon this opportunity to vindicate myself from some of the charges alleged against me. When my spirit shall be wafted to a more friendly port—when my shade shall have joined the bands of those martyred heroes who have shed their blood on the scaffold and in the field, in defence of their country and of virtue, this is my hope—I wish that my memory and name may animate those who survive me, while I look down with complacency on the destruction of that perfidious government, which

upholds its dominion by blasphemy of the Most High; which displays its power over man as over the beasts of the forest; which sets man upon his brother, and lifts his hand in the name of God, against the throat of his fellow, who believes or doubts a little more than the Government standard—a Government steeled to barbarity by the cries of the orphans and the tears of the widows which it has made.

[Here Lord Norbury interrupted Mr. Emmet—saying, that the mean and wicked enthusiasts who felt as he did, were not equal to the accomplishment of their wild design.]

I appeal to the immaculate God—I swear by the throne of Heaven, before which I must shortly appear—by the blood of the murdered patriots who have gone before me, that my conduct has been, through all this peril and through all my purposes, governed only by the convictions which I have uttered, and by no other view than that of their cure, and the emancipation of my country from the superinhuman oppression under which she has so long and too patiently travailed; and I confidently and assuredly hope that, wild and chimerical as it may appear, there is still union and strength in Ireland to accomplish this noblest enterprize.

Of this I speak with the confidence of intimate knowledge, and with the consolation that appertaining to that confidence. Think not, my Lords, I say this for the petty gratification of giving you a transitory uneasiness; a man who never yet raised his voice to assert a lie, will not hazard his character with posterity by asserting a falsehood on a subject so important to his country, and on an occasion like this. Yes, my Lords, a man who does not wish to have his epitaph written until his country is liberated, will not leave a weapon in the power of envy, nor a pretence to impeach the probity which he means to preserve even in the grave to which tyranny consigns him.

[Here he was again interrupted by the court.]

Again I say, that what I have spoken was not intended for your Lordships, whose situation I commiserate rather than envy—my expressions were for my countrymen—if there is a true Irishman present, let my last words cheer him in the hour of affliction.

[Here he was again interrupted; Lord Norbury said he did not sit there to hear treason.]

I have always understood it to be the duty of a judge, when a prisoner has been convicted, to pronounce the sentence of the law; I have also understood that judges sometimes think it their duty to hear with patience, and to speak with humanity; to exhort the victim of the laws, and to offer, with tender benignity, his opinion of the motives by which he was actuated in the crime of which he was adjudged guilty. That a judge has thought it his duty so to have done, I have no doubt; but where is the boasted freedom of your institutions—where is the vaunted impartiality, clemency, and mildness of your courts of justice, if an unfortunate prisoner, whom your policy, and not your justice, is about to deliver into the hands of the executioner, is not suffered to explain his motives sincerely and truly, and to vindicate the principles by which he was actuated.

My Lords, it may be a part of the system of angry justice to bow a man's mind by humiliation to the proposed ignominy of the scaffold—but worse to me than the proposed shame, or the scaffold's terrors, would be the shame of such foul and unfounded imputations as have been laid against me in this court. You, my Lord, are a Judge; I am the supposed culprit, I am a man; you are a man also; by a revolution of power, we might change places, though we never could change characters. If I stand at the bar of this court, and dare not vindicate my character, what a farce is your justice! If I stand at this bar, and dare not vindicate my character, how dare you calumniate it? Does the sentence of death, which your unhallowed policy inflicts upon my body, also condemn my tongue to silence, and my reputation to reproach? Your executioner may abridge the period of my existence, but whilst I exist I shall not forbear to vindicate my character and my motives from your aspersions; and as a man, to whom fame is dearer than life, I will make the last use of that life in doing justice to that reputation which is to live after me, and which is the only legacy I can leave to those I honour and love, and for whom I am proud to perish.

“As men, my Lords, we must appear on the great day at one common tribunal and it will then remain for the Searcher of all hearts to show a collective universe, who was engaged in the most virtuous actions or actuated by the purest motive—my country's oppressors, or——

[Here he was again interrupted, and told to listen to the sentence of the law.]

“My Lords, will a dying man be denied the legal privilege of exculpating himself, in the eyes of the community, of an undeserved reproach thrown upon him during the trial, by charging him with ambition, and attempting to cast away, for a paltry consideration, the liberties of his country? Why did your Lordships insult me? or rather, why insult justice, in demanding of me why sentence of death should not be pronounced against me? I know, my Lord, that form prescribes that you should ask the question—the form also implies the right of answering. This, no doubt, may be dispensed with, and so might the whole ceremony of the trial, since sentence was already pronounced at the Castle, before your jury was empanelled. Your Lordships are but the priests of the Oracle, and I submit—but I insist on the whole of the forms.

[Here Mr. Emmet paused, and the Court desired him to proceed.]

“I am charged with being an emissary of France. An emissary of France! and for what end? It is alleged that I wished to sell the independence of my country! and for what end? Was this the object of my ambition? and is this the mode by which a tribunal of justice reconciles contradictions? No! I am no emissary; and my ambition was to hold a place among the deliverers of my country—not in power, nor in profit, but in the glory of the achievement. Sell my country’s independence to France! and for what? Was it for a change of masters? No, but for ambition! O, my country! was it personal ambition that could influence me? Had it been the soul of my actions, could I not, by my education and fortune—by the rank and consideration of my family, have placed myself among the proudest of my country’s oppressors? My country was my idol; to it I sacrificed every selfish—every endearing sentiment—and for it I now offer up my life. O, God! No! my Lord; I acted as an Irishman, determined on delivering my country from the yoke of a foreign and unrelenting tyranny, and the more galling yoke of a domestic faction, which is its joint partner and perpetrator in the patricide, for the ignominy of existing with an exterior of splendour and a conscious depravity; it was the wish of my heart to extricate my country from this doubly-rivettted despotism. I wished to place her independence beyond the reach of any power on earth—I wished to exalt her to that proud station in the world.

“Connection with France was, indeed, intended—but only as far as mutual interest would sanction or require. Were they to assume any

authority inconsistent with the purest independence, it would be the signal for their destruction; we sought aid, and we sought it as we had assurance we should obtain it—as auxiliaries in war, and allies in peace.

“Were the French to come as invaders or enemies, uninvited by the wishes of the people, I should oppose them to the utmost of my strength. Yes, my countrymen, I would meet them on the beach, with a sword in one hand and a torch in the other; I would meet them with all the destructive fury of war, and I would animate my countrymen to immolate them in their boats, before they had contaminated the soil of my country. If they succeeded in landing, and if forced to retire before superior discipline, I would dispute every inch of ground, burn every blade of grass before them, and the last entrenchment of liberty should be my grave. What I could not do myself, if I should fall, I would leave as a last charge to my countrymen to accomplish, because I should feel conscious that life, any more than death, is unprofitable when a foreign nation holds my country in subjection.

“But it was not as an enemy that the succours of France were to land. I looked, indeed, for the assistance of France; but I wished to prove to France and to the world, that Irishmen deserved to be assisted; that they were indignant at slavery, and ready to assert the independence and liberty of their country.

“I wished to procure for my country the guarantee which Washington procured for America. To procure an aid which, by its example, would be as important as its valour—disciplined, gallant, pregnant with science and experience; who would preserve the good, and polish the rough points of our character; they would come to us as strangers and leave us as friends, after sharing our perils and elevating our destiny. These were my objects—not to receive new taskmasters, but to expel old tyrants; these were my views, and these only became Irishmen. It was for these ends I sought aid from France, because France, even as an enemy, could not be more implacable than the enemy already in the bosom of my country.

[Here he was interrupted by the Court.]

“I have been charged with that importance in the efforts to emancipate my country, as to be considered the keystone of the combination of Irishmen, or as your Lordship expressed it, “the life and blood of the conspiracy.” You do me honour over much; you have given to the subaltern all the credit of a superior. There are men engaged in this conspiracy, who

are not only superior to me, but even to your own conceptions of yourself my Lord, before the splendour of whose genius and virtues I should bow with respectful deference, and who would think themselves dishonoured to be called your friend, and who would not disgrace themselves by shaking your blood-stained hand.

[Here he was again interrupted.]

“What, my Lord! shall you tell me, on the passage to that scaffold, which that tyranny (of which you are only the intermediary executioner) has erected for my murder, that I am accountable for all the blood that has and will be shed in this struggle of the oppressed against the oppressor—shall you tell me this, and shall I be so very a slave as not to repel it?

“I do not fear to approach the Omnipotent Judge, to answer for the conduct of my whole life, and am I to be appalled and falsified by a mere remnant of mortality here! By you, too, who, if it were possible to collect all the innocent blood that you have caused to be shed, in your unhallowed ministry, into one great reservoir, your Lordship might swim in it.

[Here the Judge interfered.]

“Let no man dare, when I am dead, to charge me with dishonour; let no man attain my memory, by believing that I could have engaged in any cause but of my country’s liberty and independence, or that I became the pliant minion of power, in the oppression or the miseries of my countrymen. The proclamation of the Provisional Government speaks for our views; no inference can be tortured from it to countenance barbarity or debasement at home, or subjection, humiliation, or treachery from abroad; I would not have submitted to a foreign oppressor for the same reason that I would resist the present domestic oppressor. In the dignity of freedom, I would have fought on the threshold of my country, and its enemy should only enter by passing over my lifeless corpse. And am I, who lived but for my country, and who have subjected myself to the dangers of the jealous and watchful oppressor, and the bondage of the grave, only to give my countrymen their rights and my country her independence—am I to be loaded with calumny, and not suffered to resent or repel it? No, God forbid!

[Here Lord Norbury told Mr. Emmet that his sentiments and language disgraced his family and education, but more particularly his father, Dr.

Emmet, who was a man, if alive, that would not countenance such opinions.]

“If the spirits of the illustrious dead participate in the concerns and cares of those who are dear to them in this transitory life—O ever dear and venerated shade of my departed Father, look down with scrutiny upon the conduct of your suffering son; and see if I have, even for a moment, deviated from those principles of morality and patriotism which it was your care to instil into my youthful mind, and for which I am now to offer up my life.

“My Lords, you are impatient for the sacrifice—the blood which you seek is not congealed by the artificial terrors that surround your victim; it circulates warmly and unruffled through the channels which God created for nobler purposes, but which you are bent to destroy, for purposes so grievous, that they cry to Heaven. Be ye patient! I have but a few words more to say. I am going to my cold and silent grave: my lamp of life is nearly extinguished: my race is run: the grave opens to receive me, and I sink into its bosom! I have but one request to ask at my departure from this world; it is the charity of its silence! Let no man write my epitaph; for as no man who knows my motives dare now vindicate them, let not prejudice or ignorance asperse them. Let them and me repose in obscurity and peace, and my tomb remain uninscribed, until other times, and other men, can do justice to my character. When my country takes her place among the nations of the earth—then, and not till then—let my epitaph be written. I HAVE DONE.

ACCOUNT OF THE LATE PLAN OF INSURRECTION IN DUBLIN, AND THE CAUSE OF ITS FAILURE.^[7]

The plan was comprised under three heads—*points of attack, points of check, and lines of defence.*

The points of attack were three:—The Pigeon House, the Castle, and the Artillery Barracks at Island Bridge.

The attack was to begin with the Pigeon House, number of men 200. The place of assembly, the Strand, between Irishtown and Sandymount. The time, low water. The men to divide into two bodies: one to cross by a sand bank, between the Pigeon House and Light House, where they were to mount the wall; the other to cross at Devonshire Wharf; both parties to detach three men with blunderbusses, and three with jointed pikes, concealed, who were to seize the sentries and gates for the rest to rush in. Another plan was formed for high water, by means of pleasure, or fishing boats, going out in the morning, one by one, and returning in the evening to the dock at the Pigeon House, where they were to land. A rocket from this was to be the signal for the other two, viz.:

The Castle, the number of men 200. The place of assembly, Patrick-street depot. A house in Ship-street was expected, also one near the gate. A hundred men to be armed with jointed pikes and blunderbusses, the rest to support them, and march openly with long pikes. To begin by the entrance of two job coaches, hackney coachmen, two footmen, and six persons, inside, to drive in at the upper gate into the yard, come out of the coaches, turn back and seize the guard, (or instead of one of the job coaches, a sedan going in at the same time, with two footmen, two chairmen, and one inside;) at the same moment a person was, in case of failure, to knock at Lamprey's door, seize it and let in others, to come down by a scaling ladder from a window on the top of the guard-house, while attacks were made at a

public house in Ship-street, which has three windows commanding the guard-house, a gate in Stephen-street, another at the Aungier-Street, end of Great George's-street, leading to the ordnance, another at the new houses in George's-street, leading to the riding yard, and another over a piece of a brick wall near the Palace-street gate. Scaling ladders for all these. Fire balls, if necessary, for the guard-house of the upper gate. The Lord Lieutenant and principal officers of government, together with the bulk of artillery, to be sent off under an escort to the commander in Wicklow, in case of being obliged to retreat. I forgot to mention that the same was to be done with as much of the Pigeon House stores as could be. Another party with some artillery to come into town along the quays, and take post at Carlisle Bridge, to act according to circumstances.

Island Bridge, 400 men. Place of assembly, Quarry-hole opposite, and Burying ground.—Eight men with pistols and one with a blunderbuss, to seize the sentry walking outside, seize the gates, some to rush in, seize the cannon opposite the gate, the rest to mount on all sides by scaling ladders; on seizing this to send two cannon over the bridge facing the barrack-road. Another detachment to bring cannon down James's-street, another towards Rathfarnham as before. To each of the flank points, when carried, reinforcements to be sent, with horses, &c. to transport the artillery. Island Bridge only to be maintained; a false attack also thought of, after the others had been made on the rear of the barracks, and if necessary, to burn the hay stores in the rear.

Three rockets to be the signal that the attack on any part was made, and afterwards a rocket of stars in case of victory, a silent one of repulse.

Another point of attack not mentioned: Cork-street Barracks; if the officer could surprise it, and set fire to it; if not, to take post in the house (I think in Earl-street, the street at the end of Cork-street, leading to Newmarket, looking down the street with musquetry, two bodies of pikemen in Earl-street,) to the right and left of Cork-street, and concealed from troops marching in that street. Another in, I think, Marrowbone-lane, to take them in rear. Place of assembly, fields adjacent, or Fenton fields.

POINTS OF CHECK.—The old Custom-house, 300 men, the gate to be shut or stopped with a load of straw, to be previously in the street.—The other small gate to be commanded by musquetry, and the bulk of the 300 men to be distributed in Parliament-street, Crane-lane, and those streets falling into

Essex-street, in order to attach them if they forced out. The jointed pikes and blunderbusses lying under great coats, rendered all these surprises unsuspected; fire balls, if necessary, and a beam of rockets.

An idea also was, if money had been got, to purchase Rafferty's cheese shop, opposite to it, to make a depot and assembly; and to mine under and blow up a part of the Custom-house, and attack them in confusion, as also the Castle. The miners would have been got also to mine from a cellar into some of the streets through which the army from the barracks must march.

The assembly was at the Coal-quay.

Mary-street barracks, sixty men. A housepainter's house, and one equally removed on the opposite side, (No. 36, I believe,) whose fire commands the iron gate of the barracks without being exposed to the fire from it, to be occupied by twenty-four blunderbusses; the remainder, pikemen, to remain near Cole's-lane or to be ready in case of rushing out to attack them. Assembly, Cole's-lane market, or else detached from Custom-house body.

The corner house of Capel-street, (it was Killy Kelley's,) commanding in Ormond-quay, and Dixon, the shoemaker's (or the house beyond it,) which open suddenly on the flank of the army, without being exposed to their fire, to be occupied by blunderbusses. Assembly detached from Custom-house body.

LINES OF DEFENCE.—Beresford-street has six issues from Church-street, viz: Coleraine-street, King-street, Stirrup-lane, Mary's-lane, Pill-lane, and the Quay. These to be chained in the first instance by a body of chainmen; double chains and padlocks were deposited, and the sills of the doors marked. The blockade to be afterwards filled up; that on the Quay by bringing up the coaches from the strand, and oversetting them, together with the butchers' blocks from Ormond-market. The houses over the chains to be occupied with hand grenades, pistols and stones. Pikemen to parade in Beresford-street, to attack instantly any person that might penetrate; the number 200. Assembly, Smithfield depot, where were 800 pikes for reinforcements. The object was to force the troops to march towards the Castle, by the other side of the water, where the bulk of the preparations and men to receive them were.

Merchant's Quay. In case the army, after passing the Old Bridge, marched that way, Wogan's house and a Birmingham warehouse next to it to be occupied with musquetry, grenades, and stones; also, the leather crane

at the other end of the Quay; a beam to be before the crane, lying across the Quay, to be fired at the approach of the enemy's column. A body of pikemen in Winetavern-street, instantly to rush on them in front; another body in Cook-street to do the same, five lanes opening on their flank, and by Bride-street in their rear. Another beam in Bridge-street, in case of taking that route, and then the Cook-street body to rush out instantly in front; a beam in Dirty-lane; main body of pikemen in Thomas-street to rush on them instantly on firing the beam. The body on the Quay to attack on rear; in case of repulse, Catherine's Church, Market house, and two houses adjacent, that command that street, occupied with musquetry. Two rocket batteries near the Market house, a beam before it, body of pikemen in Swift's-alley, and that range, to rush on their flank, after the beam was fired through Thomas-court, Vicar-street, and three other issues; the corner houses of these issues to be occupied by stones and grenades, the entire of the other side of the street to be occupied with stones, &c. the flank of this side to be protected by a chain at James's-gate, and Guinness's drays, &c. the rear of it to be protected from Cook-street, in case the officer there failed, by chains across Rainsford-street, Crilly's-Yard, Meath-street, Ash-street, and Francis-street. The Quay body to co-operate by the issues before mentioned, (at the other side,) the chains of which would be opened by us immediately. In case of further repulse, the houses at the corner of Cutpurse-row, commanding the lanes at each side of the Market-house, the two houses in High-street, commanding that open, and the corner houses of Castle-street, commanding Skinner-row, (now Christ Church-place) to be successively occupied. In case of a final retreat, the routes to be three: Cork-street, to Templeogue, New-street, Rathfarnham, and Camden-street department. The bridges of the Liffey to be covered six feet deep with boards full of long nails bound down by two iron bars, with spikes eighteen inches long, driven through them into the pavement to stop a column of cavalry, or even infantry.

The whole of this plan was given up by me for the want of means, except the Castle and lines of defence, for I expected 300 Wexford men, 400 Kildare men, and 200 Wicklow, all of whom had fought before, to begin the surprises at this side of the water, and by the preparations for defence, so as to give time for the town to assemble. The county of Dublin was also to act at the instant it began—the number of Dublin people acquainted with it I understood to be 4 or 5,000. I expected 2,000 to assemble at Costigan's

Mills, the grand place of assembly. The evening before, the Wicklow men failed, through their officer. The Kildare men who were to act, (particularly with me,) came in, and at five o'clock went off again from the Canal-harbour, on a report that Dublin would not act. In Dublin itself, it was given out by some treacherous or cowardly person, that it was postponed till Wednesday. The time of assembly was from six till nine, instead of 2,000, there was eighty men assembled, when we came to the Market-house they were diminished to eighteen or twenty. The Wexford men did assemble, I believe, to the amount promised, on the Coal-quay; but 300 men, though they might be sufficient to begin on a sudden, were not so, when government had five hours' notice by express from Kildare.

Added to this, the preparations were, from an unfortunate series of disappointments in money, unfinished, and scarcely any blunderbusses bought up.

The man who was to turn the fuzes and rammers for the beams forgot them, and went off to Kildare to bring men, and did not return till the very day. The consequence was, that all the beams were not loaded, nor mounted with wheels, nor the train-bags, of course, fastened on to explode them.

From the explosion in Patrick-street, I lost the jointed pikes which were deposited there, and the day of action was fixed on before this, and could not be changed.

I had no means of making up for their loss but by the hollow beams full of pikes, which struck me three or four days before the 23d. From the delays in getting the materials, they were not able to set about them till the day before; the whole of that day and the next, which ought to have been spent in arrangements, was obliged to be employed in work. Even this, from the confusion occasioned by men crowding into the depot from the country, was almost impossible.

The person who had the management of the depot mixed, by accident, the slow matches that was prepared, with what was not, and all our labour went for nothing.

The fuzes for the grenades he had also laid by where he forgot them, and could not find them in the crowd.

The cramp irons could not be got in time from the smiths, to whom we could not communicate the necessity of despatch; and the scaling ladders were not finished (but one.) Money came in at five o'clock, and the trusty

men of the depot, who alone knew the town, were obliged to be sent out to buy up blunderbusses, for the people refused to act without some. To change the day was impossible, for I expected the counties to act, and feared to lose the advantage of surprise. The Kildare men were coming in for three days; and after that it was impossible to draw back. Had I another week; had I one thousand pounds; had I one thousand men, I would have feared nothing. There was redundancy enough in any one part to have made up, if complete, for deficiency in the rest; but there was failure in all—plan, preparation, and men.

I would have given it the respectability of insurrection, but I did not uselessly wish to spill blood: I gave no signal for the rest, and they all escaped.

I arrived time enough in the country to prevent that part of it which had already gone out with one of my men, to disarm the neighbourhood from proceeding. I found that by a mistake of the messenger, Wicklow would not rise that night—I sent off to prevent it from doing so the next, as it intended. It offered to rise even after the defeat, if I wished it, but I refused. Had it risen, Wexford would have done the same. It began to assemble, but its leader kept it back till he knew the fate of Dublin. In the state Kildare was in, it would have done the same. I was repeatedly solicited by some of those who were with me to do so, but I constantly refused. The more remote counties did not rise, for want of money to send them the signal agreed on.

I know how men without candour will pronounce on this failure, without knowing one of the circumstances that occasioned it. They will consider only that they predicted it; whether its failure was caused by chance, or by any of the grounds on which they made their prediction, they will not care—they will make no distinction between a prediction fulfilled and justified—they will make no compromise of errors—they will not recollect that they predicted also that no system could be formed—that no secrecy nor confidence could be restored—that no preparations could be made—that no plan could be arranged—that no day could be fixed, without being instantly known at the Castle; that government only waited to let the conspiracy ripen, and crush it at their pleasure; and that on these grounds only did they predict it miscarriage. The very same men that after success would have flattered, will now calumniate. The very same men, that would have made an offering of unlimited sagacity at the shrine of victory, will not now be

content to take back that portion that belongs of right to themselves, but would violate the sanctuary of misfortune, and strip her of that covering that candour would have left her.

R. E.

The following facts have come to our knowledge, too late to be inserted in their proper place. But we deemed them too interesting to be altogether omitted. Indeed, every incident of his short, but virtuous life, however slight, cannot fail to impart some degree of at least a melancholy pleasure to every generous and patriotic bosom.

“One day, previous to his trial, as the governor was going his rounds, he entered Emmet’s room rather abruptly, and observing a remarkable expression in his countenance, he apologised for the interruption. He had a fork affixed to his little deal table, and appended to it there was a tress of hair. ‘You see,’ said he to his keeper, ‘how innocently I have been occupied: this little tress has been long dear to me, and I am plaiting it to wear in my bosom on the day of my execution.’ On the day of that fatal event, there was found, sketched by his own hand with a pen and ink, upon that very table, an admirable likeness of himself, the head severed from the body which lay near it, surrounded by the scaffold, the axe and all the paraphernalia of a high treason execution. What a strange union of tenderness, enthusiasm and fortitude, do not the above traits of character exhibit! His fortitude indeed, never forsook him; on the night previous to his death, he slept as soundly as ever, and when the fatal morning dawned, he arose, knelt down and prayed, ordered some milk, which he drank, wrote two letters, (one to his brother in America, and the other to the secretary of state, inclosing it,) and then desired the sheriffs to be informed that he was ready. When they came to his room, he said he had two requests to make: one, that his arms might be left as loose as possible, which was humanely acceded to. “I make the other,” said he, “not under any idea that it can be granted, but that it may be held in remembrance that I have made it, it is, that I may be permitted to die in my green uniform.” This, of course, was not allowed him—and the request seemed to have no other object than to show that he gloried in the cause for which he was to suffer. A remarkable example of his power, both over himself and others, occurred at this melancholy moment. He was passing out, attended by the sheriffs and preceded by the executioner; in one of the passages stood the turnkey who

had been personally assigned to him during his imprisonment: this poor fellow loved him in his heart, and the tears were streaming from his eyes in torrents. Emmet paused for a moment; his hands were not at liberty—he kissed his cheek—and the man who had been for years the attendant of a dungeon, habituated to scenes of horror, and hardened against their operation, fell senseless at his feet. Before his eyes had opened again upon this world, those of the youthful sufferer had closed forever!”

THE END.

1. AGRICULTURE.—‘The mother and nurse of a military population, Ireland has been forced into this. It was thought that she had sunk under the arbitrary tyranny of British monopoly. Let the proud Briton regale himself in the wholesome air of mines and workshops, and become ossified in the strengthening attitudes of monotonous labour; while the degraded Irishman draws health and number, and fierceness and force, and becomes too nimble to be caught by his crippled owner, who hobbles after and threatens with his crutch.’

2. A contemptuous name for Yeomen.

3. It is said that the North Cork Regiment were the inventors—but they certainly were the intruders of pitchcap torture into the county of Wexford. Any person having their hair cut short, (and therefore called a Croppy, by which appellation the soldiery designated a United Irishman) on being pointed out by some loyal neighbour, was immediately seized and brought into a guard-house, where caps either of coarse linen, or strong brown paper, besmeared inside with pitch, were kept always ready for service. The unfortunate victim had one of these, well heated, compressed on his head: and when judged of a proper degree of coolness, so that it could not easily be pulled off, the sufferer was turned out amidst the horrid acclamations of the merciless torturers, and to the view of vast numbers of people, who generally crowded to the guard-house door, attracted by the afflicting cries of the tormented.

4. Hay’s History of the Insurrection in Wexford.

5. The rebel outlaws, who took up their abodes in the mountains and fastnesses of Wexford and Wicklow, after 1798, ludicrously called themselves “The Babes of the Wood.”

6. That paper was as follows:

“It may appear strange, that a person avowing himself to be an enemy of the present Government, and engaged in a conspiracy for its overthrow, should presume to suggest an opinion to that Government on any part of its conduct, or could hope that advice coming from such authority, might be received with attention. The writer of this, however, does not mean to offer an opinion on any point, on which he must of necessity, feel differently from any of those whom he addresses, and on which therefore his conduct might be doubted. His intention is to confine himself entirely to those points on which, however widely he may differ from them in others, he has no hesitation in declaring, that, as a man, he feels the same interest with the merciful part, and as an Irishman, with at least the English part of the present administration: and at the same time to communicate to them in

the most precise terms, that line of conduct which he may hereafter be compelled to adopt, and which, however painful it must, under any circumstances be, would become doubly so if he was not conscious of having tried to avoid it by the most distinct notification. On the two first of these points, it is not the intention of the undersigned, for the reason he has already mentioned, to do more than state, what government itself must acknowledge—that of the present conspiracy it knows (comparatively speaking) nothing. That instead of creating terror in its enemies, or confidence in its friends, it will only serve by the scantiness of its information, to furnish additional grounds of invective to those who are but too ready to censure it for a want of intelligence, which no sagacity could have enabled them to obtain. That if it is not able to terrify by a display of its discoveries, it cannot hope to crush by the weight of its punishments. Is it only now we are to learn, that entering into conspiracy exposes us to be hanged?—Are the scattered instances which will now be brought forward necessary to exemplify the statute? If the numerous and striking examples which have already preceded, were insufficient,—if government can neither by novelty of punishment, nor the multitude of its victims, impress us with terror, can it hope to injure the body of a conspiracy so impenetrably woven as the present, by cutting off a few threads from the end of it.

“That with respect to the second point, no system however it may change the nature, can affect the period of the contest that is to take place; as to which the exertions of United Irishmen will be guided only by their own opinion of the eligibility of the moment for effecting the emancipation of their country.

“That administration....”

The following paper was found in the depot, in Emmet’s hand-writing:—

“I have little time to look at the thousand difficulties which still lie between me and the completion of my wishes that those difficulties will likewise disappear I have ardent, and I trust, rational hopes; but if it is not to be the case, I thank God for having gifted me with a sanguine disposition. To that disposition I run from reflection, and if my hopes are without foundation—if a precipice is opening under my feet, from which duty will not suffer me to run back, I am grateful for that sanguine disposition, which leads me to the brink and throws me down, while my eyes are still raised to visions of happiness, that my fancy formed in the air.”

7. Annexed to the copy from which the above has been transcribed, is the following memorandum, in the hand-writing of a gentleman who held a confidential situation under the Irish government.—“The original of this paper was delivered on the morning just before he was brought out to execution, in order to be forwarded to his brother, Thomas Addis Emmet, at Paris.”

TRANSCRIBER'S NOTES

1. Silently corrected obvious typographical errors and variations in spelling.
2. Retained archaic, non-standard, and uncertain spellings as printed.
3. Re-indexed footnotes using numbers and collected together at the end of the last chapter.

*** END OF THE PROJECT GUTENBERG EBOOK THE LIFE, TRIAL
AND CONVERSATIONS OF ROBERT EMMET, ESQ., LEADER OF
THE IRISH INSURRECTION OF 1803 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.